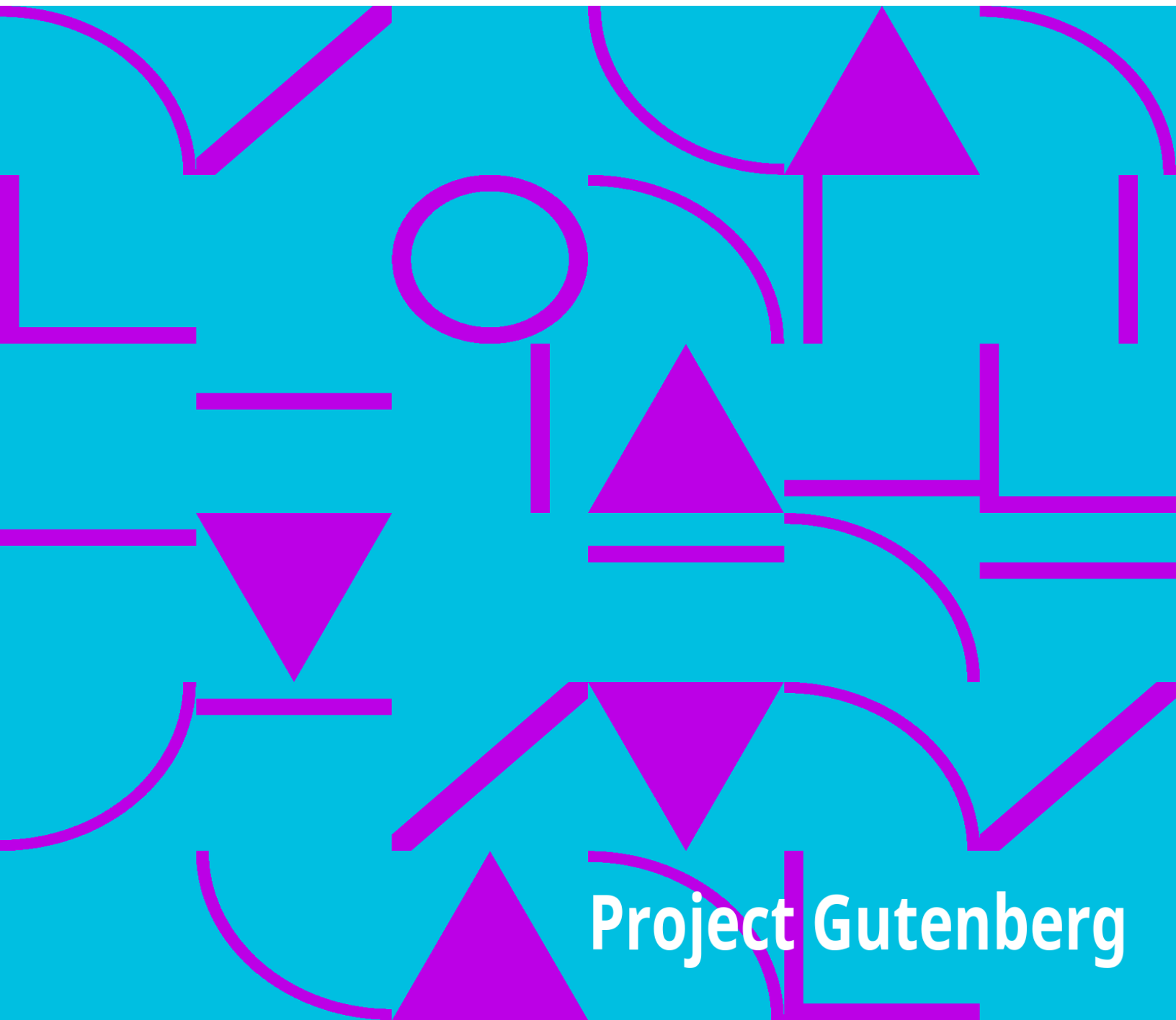


In Jail with Charles Dickens

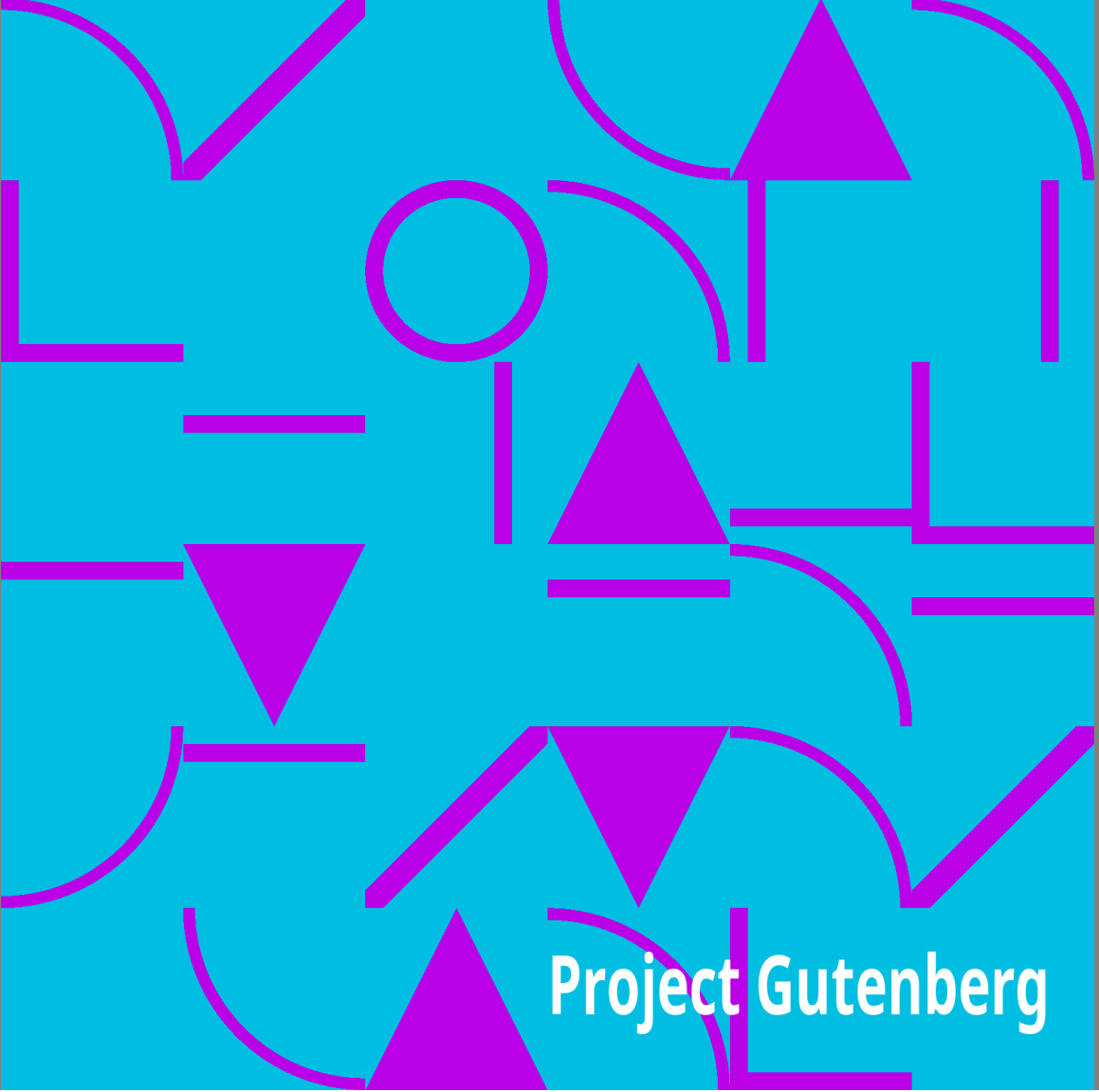
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In Jail with Charles Dickens

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Title: In Jail with Charles Dickens

Author: Alfred Trumble

Release date: October 21, 2010 [eBook #34112]

Language: English

Other information and formats: www.gutenberg.org/ebooks/34112

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CHARLES DICKENS ***

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In Jail with Charles Dickens.

p. i

IN JAIL WITH CHARLES DICKENS

BY
ALFRED TRUMBLE
EDITOR OF “THE COLLECTOR”

Illustrated



London
SUCKLING & GALLOWAY
1896

p. ii

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frontispiece



The Mob destroying the burning fire to the KENNA BENCH PRISON & HOUSE of CORRECTIONS in St. George's Fields.

Published by the "Pictorial" Office, by Printing & Publishing House, New York.

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INTRODUCTORY.

READERS of Charles Dickens must all have remarked the deep and abiding interest he took in that grim accessory to civilization, the prison. He not only went jail hunting whenever opportunity offered, but made a profound study of the rules, practices and abuses of these institutions. Penology was, in fact, one of his hobbies, and some of the most powerful passages in his books are those which have their scene of action laid within the shadow of the gaol. It was this fact which led to the compilation of the papers comprised in the present volume.

The writer had been a student of Dickens from the days when the publication of his novels in serial form was a periodical event. When he first visited England, many of the landmarks which the novelist had, in a manner, made historical, were still in existence, but of the principal prisons which figure in his works Newgate was the only one which existed in p. iv any approximation to its integrity. The Fleet and the King's Bench were entirely swept away; of the Marshalsea only a few buildings remained, converted to ordinary uses. In this country, however, the two jails which interested him, still remain, with certain changes that do not impair their general conformance to his descriptions.

These papers, therefore, consist of personal knowledge, as a voluntary visitor, be it understood, of Newgate. The Tombs in New York, and the Eastern District Penitentiary in Philadelphia, supplemented by references to the records. For the Fleet, Marshalsea, and Kings Bench, the writer is indebted to the chronicles and descriptions of Peter Cunningham, John Timbs, Leigh Hunt, and other ingenious and interesting historians of the London of the early Victorian era. In connection with the paper relating to the Eastern District Penitentiary of Philadelphia, his thanks are due for the

assistance and information rendered by Mr. Michael J. Cassidy,
the Warden.

ALFRED TRUMBLE.

New York, March 1896.

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In Jail with Charles Dickens.

CHAPTER I.

NEWGATE WITHOUT.

NEWGATE was the first prison to which Charles Dickens gave any literary attention. An account of a visit to it appears among the early "Sketches by Boz." It is also the only one of the London jails of which he has left us graphic descriptions, or briefer, spirited sketches, which preserves to-day so much of its original character as to be identifiable in detail by the student of his works. The Fleet and the King's Bench have disappeared. The Marshalsea may only be recognized by slight surviving landmarks. But the sombre and sullen bulk of Newgate rears itself in the heart of London, a sinister monument to the horrors bred by a civilization rotten of its own over-ripeness, in the forcing-bed of the most magnificent, p. 2 wonderful and monstrously terrible city of the world.

If external gloom could exercise an influence to deter anyone from the commission of crime of which it is a part of the penalty, Newgate would never have any inmates. Surrounded at the time of my introductory visit to it, as an accidental but not legally involuntary visitor, by low public-houses, poor shops and a tumble-down market, all bearing the grime of age and the marks of decay, as if the frown of the great jail had blighted them; with the foul, miry lane of Newgate street, and the scarcely-cleaner Old Bailey, alive with muddy carts and shabby people, skulking roughs, draggled women and squalling children, no man who had no business there would care, once having seen it, to seek it out again. Being then new in London, I had been begriming myself among the old books of St. Paul's Churchyard until I was tired and thirsty, and strolling along Ludgate Hill in quest of refreshment, turned into the second street I came to. A few steps more and I found myself stopping

at another street corner to look at an immense and grim mass of gray stone towering loftily in the fog, with little p. 3 windows here and there along its frowning wall. They were so small that they might have been mere spaces where the builders had forgotten to put in a block of granite, if it had not been for the strong, rusty bars that crossed them. I asked a man who came out of a public-house wiping his mouth on the back of his hand what place that was. He stared at me in evident amazement for a minute, and then said, shortly, in an aggravated tone of voice, poking a finger, still moist from his libation, at it, like a dagger:

“Newgate, that is.”

He went along, shaking his head in a dubious way and looking back several times at me, clearly either suspicious of the genuineness of my stupendous ignorance, or unable to comprehend how anyone could be ignorant of the identity of the famous jail. I have no doubt that it was vastly stupid of me. In fact, I experienced a certain feeling of contempt for myself, now that I knew what the place was, and that it was the place of which I had read so much that I almost had its history by heart; but after all, London is a “very considerable-sized town,” as I once had a Chicago acquaintance p. 4 generously admit, and one could scarcely be expected to know it like a guide-book, within forty-eight hours after making first acquaintance with its bitter beer, its bloody beef, and its beds into whose coverlids the essence of the fog seemed to have penetrated, if, indeed, the sheets were not woven out of the fog itself.

Newgate, in its external appearance, at least, is an ideal prison. Its aspect, whether purposely or through the adaptation of its construction to its uses, is thoroughly jail-like. The few openings in the walls, the empty blind niches, which might have been left there for statues of great felons never set up in them; the entrance, with its festooned fetters carved in stone as an ornament to the gloomy and forbidding portal, all are appropriate to and a significant part of it. Within a few feet of where I stood when I viewed it first was the spot where the scaffold used to be put up. Here, on the occasion of an execution, as one may read in Chapter 52 of “*Oliver Twist*,” the

space before the prison was cleared, and a few strong barriers painted black thrown across the road to break the pressure of the crowd, while the more favored portion of the audience p. 5 occupied every post of vantage, at windows and housetops, that commanded a view of the ghastly show. Here, as Oliver noted when he came away from his last interview with Fagin at the dawn of day: "A great multitude had already assembled; the windows were filled with people smoking and playing cards to beguile the time; the crowd was pushing, quarreling and joking. Everything told of life and animation, but one dark cluster of objects in the very centre of all—the black stage, the crossbeam, the rope, and all the hideous apparatus of death."

Prisoners of old were executed on Tyburn Hill in public, or on some occasions, when it was especially desired to enforce an example, as close as possible to the scene of guilt. Those who were punished for participation in the Gordon Riots of 1780 were swung off in the various parts of the city where their crimes were committed. In 1793 the common places of execution were changed to the Old Bailey, in front of Newgate. There the first culprit was executed on December 9 of that year. Hanging was brisk when George III was king. Between February and December, 1785, ninety-six persons suffered by the trap arrangement p. 6 now in common use the world over, which was then known as the "new drop." Previous to that time it had been the custom to perch the candidates for the halter on a cart, which was driven from under them at the fatal signal, while someone hung on to their legs to choke them more speedily and surely—an expeditious practice quite frequently resorted to by Judge Lynch in America in after years, and still not entirely out of use for extemporaneous executions. In "Barnaby Rudge" (volume 2, chapter 19) Dickens gives the most detailed description of a Newgate execution which occurs in his works. The passage is well worth quoting at length:

"The time wore on. The noises in the streets became less frequent by degrees until the silence was scarcely broken, save by the bells in the church towers marking the progress, softer and more stealthily while the city

slumbered, of that Great Watcher with the hoary head, who never sleeps or rests. In the brief interval of darkness and repose which feverish towns enjoy, all busy sounds were hushed; and those who awoke from dreams lay listening in their beds, and longed for dawn, and wished the dead of the night were passed.

“Into the street, outside the gaol’s main wall, p. 7 workmen came straggling, at this solemn hour, in groups of two or three, and, meeting in the centre, cast their tools upon the ground and spoke in whispers. Others soon issued from the gaol itself, bearing on their shoulders planks and beams: these materials being all brought forth, the rest bestirred themselves, and the dull sound of hammers began to echo through the stillness.

“Here and there among this knot of laborers, one with a lantern or a smoky link stood by to light his fellows at their work; and by its doubtful aid some might be seen dimly, taking up the pavement of the road, while others held upright great posts, or fixed them in holes thus made for their reception. Some dragged slowly on toward the rest an empty cart, which they brought rumbling from the prison yard, while others erected strong barriers across the street. All were busily engaged. Their dusky figures moving to and fro at that unusual hour, so active and so silent, might have been taken for those of shadowy creatures toiling at midnight on some ghostly, unsubstantial work, which, like themselves, would vanish with the first gleam of day, and leave but morning mist and vapor.

“While it was yet dark a few lookers-on collected, who had plainly come there for that purpose and intended to remain; even those who had to pass the spot on their way to some other p. 8 place, lingered, and lingered yet, as though the attraction of that were irresistible. Meanwhile the noise of the saw and mallet went on briskly, mingled with the clattering of boards on the stone pavement of the road, and sometimes with the workmen’s voices as they

called to one another. Whenever the chimes of the neighboring church were heard—and that was every quarter of an hour—a strong sensation, instantaneous and indescribable, but perfectly obvious, seemed to pervade them all.

“Gradually a faint brightness appeared in the East, and the air, which had been very warm through the night, felt cool and chilly. Though there was no daylight yet, the darkness was diminished, and the stars looked pale. The prison, which had been a mere black mass, with little shape or form, put on its usual aspect; and ever and anon a solitary watchman could be seen upon its roof, stopping to look down upon the preparations in the street. This man, from forming, as it were, a part of the gaol, and knowing, or being supposed to know, all that was passing within, became an object of much interest, and was eagerly looked for, and as awfully pointed out as if he had been a spirit.

“By and by the feeble light grew stronger, and the houses, with their signboards and inscriptions, stood plainly out in the dull gray of the morning. Heavy stage-wagons crawled from the inn yard opposite, and travelers p. 9 peeped out, and, as they rolled sluggishly away, cast many a backward look toward the gaol. And now the sun’s first beams came glancing into the street, and the night’s work, which in its various stages and in the varied fancies of the lookers-on had taken a hundred shapes, wore its own proper form—a scaffold and gibbet.

“As the warmth of the cheerful day began to shed itself upon the scanty crowd the murmur of tongues was heard, shutters were thrown open, the blinds drawn up, and those who had slept in rooms over against the prison, where places to see the execution were let at high prices, rose hastily from their beds. In some of the houses people were busy taking out the window-sashes for the better accommodation of the spectators; in others, the spectators were already seated, and beguiling the time with cards, or

drink, or jokes among themselves. Some had purchased seats upon the housetops, and were already crawling to their stations from parapet and garret window. Some were yet bargaining for good places, and stood in them in a state of indecision, gazing at the slowly-swelling crowd, and at the workmen as they rested listlessly against the scaffold—affecting to listen with indifference to the proprietor’s eulogy of the commanding view his house afforded, and the surpassing cheapness of his terms.

p. 10

“A fairer morning never shone. From the roofs and the upper stories of the buildings the spires of the city churches and the great cathedral dome were visible, rising up beyond the prison into the blue sky, and clad in the color of light summer clouds, and showing in the clear atmosphere their every scrap of tracery and fretwork, and every niche and loophole. All was lightness, brightness and promise, excepting in the street below, into which (for it lay yet in the shadow) the eye looked down into a dark trench, where, in the midst of so much life and hope and renewal of existence, stood the terrible instrument of death. It seemed as if the very sun forbore to look upon it.

“But it was better, grim and sombre in the shade, than when, the day being more advanced, it stood confessed in full glare and glory of the sun, with its black paint blistering and its nooses dangling in the light like loathsome garlands. It was better in the solitude and gloom of midnight, with a few forms clustering about it, than in the freshness and the stir of the morning, the centre of an eager crowd. It was better haunting the street like a spectre, when men were in their beds, and influencing, perchance, the city’s dreams, than braving the broad day, and thrusting its obscene presence upon the waking senses.

“Five o’clock had struck—six, seven and eight. Along the two main streets, at either p. 11 end of the crossway, a living stream had now set in, rolling to the marts of gain

and business. Carts, coaches, wagons, trucks and barrows, forced a passage through the outskirts of the throng and clattered onward in the same direction. Some of these, which were public conveyances, and had come from a short distance in the country, stopped, and the driver pointed to the gibbet with his whip, though he might have spared himself the pains, for the heads of all the passengers were turned that way without his help, and the coach windows were stuck full of staring eyes. In some of the carts and wagons women might be seen, glancing fearfully at the same unsightly thing; and even little children were held up above the peoples' heads to see what kind of a toy a gallows was and to learn how men were hanged.

“Two rioters were to die before the prison, who had been concerned in the attack upon it; and one directly after in Bloomsbury Square. At nine o'clock a strong body of military marched into the street, and formed and lined a narrow passage into Holborn, which had been indifferently kept all night by constables. Through this another cart was brought (the one already mentioned had been employed in the construction of the scaffold), and wheeled up to the prison gate. These preparations made, the soldiers stood at ease; p. 12 the officers lounged to and fro in the alley they had made, or talked together at the scaffold's foot; and the concourse which had been rapidly augmenting for some hours, and still received additions every minute, waited with an impatience which increased with every chime of St. Sepulchre's clock for twelve at noon.

“Up to this time they had been very quiet, comparatively silent, save when the arrival of some new party at a window, hitherto unoccupied, gave them something to look at or to talk of. But, as the hour approached, a buzz and a hum arose, which, deepening every moment, soon swelled into a roar, and seemed to fill the air. No words, or even voices, could be distinguished

in this clamor, nor did they speak much to each other; though such as were better informed on the topic than the rest would tell their neighbors, perhaps, that they might know the hangman when he came out, by his being the shorter one; and that the man that was to suffer with him was named Hugh; and that it was Barnaby Rudge who would be hanged in Bloomsbury Square.

“The hum grew, as the time drew near, so loud that those who were at the windows could not hear the church clock strike, though it was close at hand. Nor had they any need to hear it either, for they could see it in the peoples’ faces. So surely as another quarter chimed p. 13 there was a movement in the crowd—as if something had passed over it—as if the light upon them had been changed—in which the fact was readable as on a brazen dial, figured by a giant’s hand. Three-quarters past eleven. The murmur now was deafening, yet every man seemed mute. Look where you would among the crowd, you saw strained eyes and lips compressed; it would have been difficult for the most vigilant observer to point this way or that, and say that yonder man had cried out. It were as easy to detect the motion of the lips in a sea-shell.

“Three-quarters past eleven. Many spectators who had retired from the windows came back refreshed, as though their watch had just begun. Those who had fallen asleep aroused themselves; and every person in the crowd made one last effort to better his position, which caused a press against the sturdy barriers that made them bend and yield like twigs. The officers, who until now had kept together, fell into their several positions, and gave the words of command. Swords were drawn, muskets shouldered, and the bright steel, winding its way among the crowd, gleamed and glittered in the sun like a river. Along this shining path two men were hurrying on, leading a horse, which was speedily harnessed to the cart at the prison door. Then a profound silence replaced the tumult that had so long been gathering, and a breathless pause ensued.

Every window was p. 14 now choked up with heads; the housetops teemed with people clinging to chimneys, peering over gable-ends, and holding on where the sudden loosening of any brick or stone would dash them down into the street. The church-tower, the church-roof, the churchyard, the prison-leads, the very waterspouts and lampposts, every inch of room swarmed with human life.

“At the first stroke of twelve the prison bell began to toll. Then the roar, mingled now with cries of ‘Hats off!’ and ‘Poor fellows!’—and, from some specks in the great concourse, with a shriek or groan—burst forth again. It was terrible to see—if anyone in that distraction of excitement could have seen—the world of eager eyes all strained upon the scaffold and the beam.”

The Newgate gallows in “Barnaby Rudge” was set up for the ruffian Hugh, the bastard of Sir John Chester and his gypsy light-o-love, and for Dennis the hangman, who had been concerned as leaders in the attack on the prison by the Gordon Rioters. “Two cripples—both were boys—one with a leg of wood, one who dragged his twisted body along with the help of a crutch, were hanged in Bloomsbury Square, where they had helped to sack Lord Mansfield’s house, and other rioters in other p. 15 parts of the town, in despoiling which they had been conspicuous.” It may be recalled that the mother of Hugh herself had died on the scaffold, at Tyburn, for the crime of passing forged notes. To descend from the realm of romance to that of reality, the most memorable executions in the Old Bailey were those of Mrs. Phipoe, the murderess, in 1797; of Governor Wall of Trinidad, for murder, on Jan. 28, 1802; of Holloway and Haggerty, the murderers, on Feb. 22, 1807, when thirty spectators were trampled to death; of Bellingham, the assassin of a member of Parliament, Percival, on May 18, 1812; of the Cato Street Conspirators, who were cut down and decapitated on the scaffold in the presence of the multitude, on May 1, 1820; of Fauntleroy, the banker, hanged for forging in 1824; of the assassin Greenacre, in 1837; of Courvoiser, who murdered Lord William Russell, in 1840; and of Franz Müller,

the railway murderer, who was extradited from this country, as will doubtless be remembered by many, and sent to his doom in 1864. That same year seven pirates were also suspended in the Old Bailey. Since then executions have been carried out privately within the walls of the prison.

p. 16

A contemporary of Dickens, in the "Ingoldsby Legends," has given us a picture, in a different vein, of the same period and subject. He has told us, in his own rattling verse, how my Lord Tomnoddy, having nothing to do, and being deucedly bored, learned from his faithful Tiger Tim that Greenacre was to be hanged at Newgate; here was indeed a sensation for His Lordship: "To see a man swing, at the end of a string, with his neck in a noose, will be quite a new thing." So he hires the whole first floor of the Magpie and Stump, opposite the jail, and invites his friends to come and help him see a man die in his shoes. They help him so effectually during the night, what with "cold fowl and cigars, pickled onions in jars, Welsh rabbits and kidney, rare work for jaws, and very large lobsters with fine claws," and the like, not to mention gin-toddy and cold and hot punch, that they fall asleep and lose the show after all, when, as they cannot have the man hung over again, they go home to bed in hackney coaches and a state of deep disgust. Another contemporary, of more ample renown, Thackeray to wit, gave some attention to the matter. In July, 1840, he published, in Frazer's Magazine, p. 17 a paper called "Going to see a man hanged." The man was Courvoiser; and Thackeray, unlike Lord Tomnoddy, did not fall asleep over the feast, and so did see him mount the scaffold.

Surgeons' Hall used to stand close to Newgate and the Old Bailey, and the victims of the halter were handed over to the doctors for dissection. The corpse of wicked Lord Ferrers, who was executed in 1760 at Tyburn for murdering his steward, was taken in his own landau and six to the Burgeons' Theatre to be cut up. After having been disemboweled, in conformance with the sentence, the body of the bad lord was put on show in the first floor window, to be hissed and hooted at by the mob. The

account of the Ferrers execution, by the way, provides a curious picture of the time. Ferrers dressed himself in his wedding suit to be hanged. He had the harness of his horses decorated with ribbons. On the way to Tyburn from the Tower, my Lord intimated a desire for some wine, being thirsty. The Sheriff, who was in the coach with him, declined to allow him to refresh himself. "Then," said the Earl, taking a bite of pigtail tobacco from a plug which he p. 18 had in his pocket, "I must be content with this." He harbored no malice against the Sheriff, however, for he presented him with his watch as they neared Tyburn. To the Chaplain he gave five guineas, and to the executioner the same sum. The executioner had to pull him by the legs to effectually strangle him, and while the body swung for an hour on the gallows, the sheriffs and their friends had luncheon on the platform within reach of it. "The executioners fought for the rope," says the chronicler, "and the one who lost it, cried."

But we have wandered far from Newgate in this wicked company. Old Newgate, upon a portion of whose site the present jail stands, was built in the reign of King John. It derived its name from the fact that London was then a walled city, and the jail was erected close to the newest gate in the fortification. It was, in fact, at first a mere tower or appendage of the gate. Newgate was used as a State prison long before the Tower. One of the many captives of this sort which it held was William Penn. The founder of Pennsylvania spent six months there for the atrocious offense of street preaching. Defoe spent some time here on account of p. 19 a political tract, and wrote several others while in confinement. Dr. Dodd wrote his successful comedy, "Sir Roger de Coverly," in Newgate. One of the last persons confined here for political offense was Mr. Hobhouse, afterward Lord Broughton. The street used to be filled with people when he took his exercise on the roof, who watched and cheered at his hat, which was all they could see of him above the wall. An odd circumstance about Mr. Hobhouse's imprisonment is that Byron had prophesied it in the remark that "having foamed himself into a reformer, he

would subside in Newgate.” Among the famous prisoners here we find Savage, the poet, for murder; Jack Sheppard, whose remarkable escape, very much exaggerated upon fact, you may have read of from Mr. Ainsworth’s pen; and Jonathan Wild, who, by the by, once lived nearly opposite the court-house, in the Old Bailey; Catherine Hayes, the abandoned heroine of Thackeray’s novel; Mrs. Brownrigg, the fiend who tortured her serving-maids; Astlett, the Bank of England clerk, who committed forgeries for over \$1,500,000, and many more. Lord George Gordon, familiar to all who have read “Barnaby Rudge,” died in 1793, of gaol-fever, in one of the cells of Newgate, after several years of confinement, for libelling the Queen of France. The poor, mad lord, whose rioters had turned the jail into a ruin once, found it strong enough to hold him and his fantastic visions securely in the end. Here is Dickens’s description of the attack upon the prison, caused by him, commencing in the second volume of “Barnaby Rudge,” Chapter Fifth.

“It was about six o’clock in the evening when a vast mob poured into Lincoln’s Inn Fields by every avenue, and divided, evidently in pursuance of a previous design, into several parties. It must not be understood that this arrangement was known to the whole crowd, but that it was the work of a few leaders, who, mingling with these men as they came upon the ground, and calling to them to fall into this or that party, effected it as rapidly as if it had been determined on by a council of the whole number, and every man had known his place.

“It was perfectly notorious to the assemblage that the largest body, which comprehended about two-thirds of the whole, was designed for the attack on Newgate. It comprehended all the rioters who had been conspicuous in any of their former proceedings; all those whom they recommended as daring hands and fit for the work; all those whose companions had been taken in the riots; and a great number of people who were relatives or friends of the felons in the gaol. This last class included not only the

most desperate and utterly abandoned villains in London, but some who were comparatively innocent. There was more than one woman there, disguised in man's attire, and bent on the rescue of a child or a brother. There were the two sons of a man who lay under the sentence of death, and who was to be executed, along with three others, the next day but one. There was a great party of boys, whose fellow pickpockets were in the prison; and, at the skirts of all, a score of miserable women, outcasts from the world, seeking to release some other fellow creature as miserable as themselves, or moved by general sympathy, perhaps, God knows, with all who were without hope and wretched.

“Old swords, and pistols without ball or powder; sledge-hammers, knives, axes, saws, and weapons pillaged from the butcher shops; a forest of iron bars and wooden clubs; long ladders for scaling the walls, each carried on the shoulders of a dozen men; lighted torches, tow smeared with pitch, and tar, and brimstone; staves roughly plucked from a fence and paling; and even crutches taken from crippled beggars on the streets composed their arms. When all was ready, Hugh and Dennis, with Simon p. 22 Tappertit between them, led the way. Roaring and chafing like an angry sea, the crowd pressed after them.”

They halt upon the way to drag Gabriel Varden from his shop, in order to compel him to pick the lock of the prison gate. They march him at the head of the mob to the jail. They find that their visit was not wholly unexpected, “for the governor's house, which fronted the street, was strongly barricaded, the wicket of the prison gate was closed up, and at no loophole or grating was any person to be seen.” The governor, inspecting the mob from the roof of his house, is summoned to surrender his charge. He refuses. The rabble call on the locksmith to pick the locks. He defies them, and is dragged away barely in time to save his life by Joe Willets and Edward Chester, who are in the mob in disguise. Then the assault on the jail begins.

“Hammers began to rattle on the walls, and every man strove to reach the prison and be among the foremost rank. Fighting their way through the press and struggle as desperately as if they were in the midst of the enemies rather than their own friends, the two men retreated with the blacksmith between them, p. 23 and dragged him through the very heart of the concourse.

“And now the strokes begin to fall like hail upon the gate and on the strong building; for those who could not reach the door spent their fierce rage on any thing, even on the great blocks of stone, which shivered their weapons into fragments, and made their hands and arms tingle as if the walls were active in their resistance and dealt them back their blows. The clash of the iron ringing upon iron mingled with the deafening tumult, and sounded high above it, as the great sledge-hammers rattled on the nailed and plated door; the sparks flew off in showers; men worked in gangs, and at short intervals relieved each other, that all their strength might be devoted to the work; but there stood the portal still, as grim and dark and as strong as ever, and, saving for the dints on its shattered surface, quite unchanged.

“While some brought all their energies to bear upon this toilsome task, and some, rearing ladders against the prison, tried to clamber to the summit of the walls they were too short to scale; and some, again, engaged a body of police, and beat them back and trod them under foot by force of numbers; others besieged the house on which the gaoler had appeared, and, driving in the door, brought out his furniture and piled it up against the prison gate to make a low fire which should burn it down. As p. 24 soon as this device was understood, all those who had labored hitherto cast down their tools and helped to swell the heap, which reached half way across the street, and was so high that those who threw more fuel on the top got up by ladders. When all the keeper’s goods were flung upon this costly pile to the last fragment, they smeared it with

pitch and tar and rosin they had brought, and sprinkled it with turpentine. To all the woodwork round the prison doors they did the like, leaving not a joist or a beam untouched. This infernal christening performed, they fired the pile with lighted matches and with blazing tow, and then stood by and waited the result.

“The furniture being very dry, and rendered more combustible by wax and oil, besides the arts they had used, took fire at once. The flames roared high and fiercely, blackening the prison wall and twining up its lofty front like burning serpents. At first they crowded around the blaze, and vented their exultation only in their looks; but when it grew hotter and fiercer; when it crackled and leaped, and roared like a great furnace; when it shone upon the opposite houses, and lighted up not only the pale and wondering faces at the windows, but the inmost corners of each habitation; when through the deep red heat and glow the fire was seen sporting and toying with the door, now clinging to its obdurate surface, now gliding p. 25 off with fierce inconstancy and roaring high into the sky, anon returning to fold it in its burning grasp and lure it to its ruin; when it shone and gleamed so brightly that the church clock of St. Sepulchre’s, so often pointing to the hour of death, was legible as in broad day, and the vane upon its steeple-top glittered in the unwonted light like some thing richly jeweled; when blackened stone and sombre brick grew ruddy in the deep reflection, and windows shone like burnished gold, dotting the longest distance in the fiery vista with their specks of brightness; when wall and tower and roof and chimney-stack seemed drunk, and in the flickering glare appeared to reel and stagger; when scores of objects, never seen before, burst out upon the view, and things the most familiar put on some new aspect, then the mob began to join the whirl, and with loud yells and shouts and clamor, such as is happily seldom heard, bestirred themselves to feed the fire and keep it at its height.

“Although the heat was so intense that the paint on the houses over against the prison parched and crackled up, and swelling into boils, as it were, from an excess of torture, broke and crumbled away; although the glass fell from the window sashes, and the lead and iron on the roofs blistered the incautious hand that touched them, and the sparrows in the eaves took wing, and, rendered giddy by the p. 26 smoke, fell fluttering down upon the blazing pile, still the fire was tended increasingly by busy hands, and round it men were going always. They never slackened in their zeal or kept aloof, but pressed upon the flames so hard that those in front had much ado to save themselves from being thrust in; if one man swooned or dropped, a dozen struggled for his place, and that, although they knew the pain and thirst and pressure to be unendurable. Those who fell down in fainting fits and were crushed or hurt were carried to an inn yard close at hand and dashed with water from a pump, of which buckets full were passed from man to man among the crowd; but such was the strong desire of all to drink, and such the fighting to be first, that, for the most part, the whole contents were spilled upon the ground, without the lips of a man being moistened.

“Meanwhile, and in the midst of all the roar and outcry, those who were nearest to the pile heaped up again the burning fragments that came toppling down, and racked the fire about the door, which, although a sheet of flame, was still a door, fast locked and barred, and kept them out. Great pieces of burning wood were passed, besides, above the people’s heads to such as stood above the ladders, and some of these, climbing up to the topmost stave, and holding on with one hand by the prison wall, exerted all their skill and force to cast these p. 27 firebrands on the roof or down into the yards within. In many instances their efforts were successful, which occasioned a new and appalling addition to the horrors of the scene, for the prisoners within, seeing from between their bars that the

fire caught in many places and thrived fiercely, and being all locked up in strong cells for the night, began to know that they were in danger of being burnt alive. This terrible fear, spreading from cell to cell and from yard to yard, vented itself in such dismal cries and wailings, and in such dreadful shrieks for help, that the whole gaol resounded with the noise, which was loudly heard even above the shouting of the mob and roaring of the flames, and was so full of agony and despair that it made the boldest tremble.

“It was remarkable that these cries began in that quarter of the gaol which fronted Newgate street, where it was well known that the men who were to suffer death on Thursday were confined. And not only were these four, who had a short time to live, the first to whom the dread of being burnt occurred, but they were, throughout, the most importunate of all; for they could be plainly heard, notwithstanding the great thickness of the walls, crying that the wind set that way, and that the flames would shortly reach them; and calling to officers of the gaol to come and quench the fire from a cistern which was in their yard, and full p. 28 of water. Judging from what the crowds from without the walls could hear from time to time, these four doomed wretches never ceased to call for help; and that with as much distraction, and in as great a frenzy of attachment to existence, as though each had an honored, happy life before him, instead of eight-and-forty hours of miserable imprisonment, and then a violent and shameful death.

“But the anguish and suffering of the two sons of one of these men, when they heard, or fancied they heard, their father’s voice, is past description. After wringing their hands, and rushing to and fro as if they were stark mad, one mounted on the shoulders of his brother, and tried to clamber up the face of the high wall, guarded at the top with spikes and points of iron. And when he fell among the crowd he was not deterred by his bruises, but

mounted up again, and fell again, and when he found the feat impossible began to beat the stones and tear them with his hands, as if he could in that way make a breach in the strong building and force a passage in. At last they cleft their way among the mob about the door, though many men, a dozen times their match, had tried in vain to do so, and were seen in, yes in, the fire, striving to pry it down with crowbars.

“Nor were they alone affected by the outcry from within the prison. The women who were looking on shrieked loudly, beat their hands together, p. 29 stopped their ears and many fainted; the men who were not near the walls and active in the siege, rather than do nothing, tore up the pavement of the street, and did so with a haste and fury that could not have been surpassed if that had been their goal and they were near their object. Not one living creature in the throng was for an instant still. The whole great mass were mad.

“A shout! Another! Another yet, though few knew why or what it meant. But those around the gate had seen it slowly yield and drop from its topmost hinge. It hung on that side but by one, but it was upright still, because of the bar and its having sunk of its own weight into the heap of ashes at its foot. There was now a gap at the top of the doorway through which could be descried a gloomy passage, cavernous and dark. Pile up the fire!

“It burnt fiercely. The door was red hot and the gap wider. They vainly tried to shield their faces with their hands, and standing, as if in readiness for a spring, watched the place. Dark figures, some crawling on their hands and knees, some carried in the arms of others, were seen to pass along the roof. It was plain that the goal could hold out no longer. The keeper and his officers and their wives and children were escaping. Pile up the fire!

“The door sank down again; it settled deeper in the cinders, tottered, yielded, was down.

“As they shouted again they fell back for a moment and left a clear space about the fire that lay between them and the gaol entry. Hugh leaped upon the blazing heap, and scattering a train of sparks into the air, and making the dark lobby glitter with those that hung upon his dress, dashed into the gaol.

“The hangman followed. And then so many rushed upon their track that the fire got trodden down and thinly strewed about the street; but there was no need of it now, for, inside and out, the prison was in flames.”

The rioters celebrated the capture of Newgate in roaring style. They commanded and compelled the citizens all around the place to illuminate their houses from bottom to top, as if for a glorious national event, and at a time of public gayety and joy. “When this last task had been achieved the shouts and cries grew fainter; the clank of the fetters, which had resounded on all sides as the prisoners escaped, was heard no more; all the noises of the crowd subsided into a hoarse and sullen murmur as it passed into the distance; and when the human tide had rolled away, a melancholy heap of smoking ruins marked the spot where it had lately chafed and roared.” Among the spectators of the capture of Newgate was the poet p. 31 Crabbe, then a young man seeking his fortune in London, and he has left a description of it in his journal. Dr. Johnson records the fact that “on Wednesday I walked with Dr. Scott (Lord Stowell) to look at Newgate and found it in ruins, with the fire yet glowing. As I went by, the Protestants were plundering the Sessions House in the Old Bailey. There were not, I believe, a hundred; but they did their work at leisure, in full security, without sentinels, without trepidation, as men lawfully employed, in full day.”

At the period of the Gordon Riots, Newgate was in the course of reconstruction. The present prison was designed by George Dance, R. A., the architect of the Mansion House and other public buildings. The famous Lord Mayor Beckford, father of the author of “Vathek,” laid the foundation stone on May 23, 1770, this being his last public act. Work seems to

have progressed slowly on it, for the newer portion was only in part completed when the Gordon mob stormed the older sections. This event served as a warning, however. Within two years Newgate was in stronger shape than ever; and substantially in the shape which, p. 32 after the passage of more than a century, it still presents to the world.

Newgate serves to London the purpose of a reception prison for offenders awaiting trial and for those condemned to death, and the executions of the great city are performed within its walls. The Old Bailey Court, which is an adjunct to it, is practically a part of the mountain of masonry which sends its bleak shadow over Newgate street and the Old Bailey. It is separated from it only by a yard, across which prisoners are led to be tried. The court-house, known colloquially, in London, as the Old Bailey, and politely as the Central Criminal Court, was built in 1773, was destroyed with Newgate in the Gordon Riots, but rebuilt and enlarged in 1809 by the taking in of Surgeons' Hall. The Court is a square hall, with a gallery for visitors. At one side is the chief seat for the judge, with a canopy overhead surmounted by the royal arms, and a gilded sheathed sword on the crimson wall. Opposite is the prisoners' dock, with the stairs descending into the covered passageway, which gives access by the way of the Press Yard to Newgate. To the left of the dock is the witness-stand, and further to p. 33 the left the jury box. The counsel occupy the body of the court below. The Old Bailey Court formerly sat at seven in the morning, but now sittings do not commence until ten. It tries crimes of every kind, from treason to petty larceny and offenses on the high seas, but only the heaviest ones are brought to judgment before this branch of the Sessions. What is called the New Court, adjoining the old one, sits upon the lighter misdemeanors. The Judges at the Old Bailey are nominally the Lord Mayor, who is, in fact, only a gorgeous dummy to open the court with true dignity, the Sheriff, the Lord Chancellor, and a long list of Judges, Aldermen, Records and so on. Of these the real Judges are the Recorder and Common Sergeant, and the Judge of the Sheriff's Court.

The law Judges take part when knotty legal questions come in dispute, or when the trial is for a capital offense which may cost the prisoner his life. A curious old custom at the Bailey is that one Alderman must be present at every sitting of the Court.

Above the Old Court is a stately dining-room where, during the Old Bailey sittings, the Sheriffs used to give Judges and Court officials, and p. 34 a few privileged visitors, dinners of rump steak and marrow puddings, according to a bill of fare provided by custom. The custom, I believe, is kept up still. There are two dinners, at 3 and 5 o'clock respectively, and a historic court chaplain is told of who for ten years ate both of these meals each day.

There is a reverse to this pleasant picture of the Old Bailey. For many years it was a most unhealthy place to hold court in. The jail fevers which decimated Newgate's population always found their way into the court room. In 1750 the fever caused the death of several judges and Lord Mayor Pennant himself, and whenever there was an epidemic there are records of its effect among the potentates of the Old Bailey. In Chapter 7 of "A Tale of Two Cities," in connection with the trial of Charles Darnay, Dickens writes of the Old Bailey Court: "They hanged at Tyburn in those days, so the street outside of Newgate had not obtained the infamous notoriety that has since attached to it. But the gaol was a vile place, in which most kinds of debauchery and villainy were practiced, and where dire diseases were bred, that came into the Court with the prisoners, and p. 35 sometimes rushed straight from the dock at my Lord Chief Justice himself, and pulled him off the bench. It had more than once happened that the judge in the black cap pronounced his own doom as certainly as the prisoner's, and even died before him." In the course of the same chapter he describes the accused as standing quiet and attentive, with his hands resting on the slab of wood forming the shelf of the prisoner's dock, "so composedly that they had not displaced a leaf of the herbs with which it was strewn. The Court was all bestrewn with herbs, and sprinkled with vinegar, as a precaution against gaol air and gaol fever." In 1770, Mr.

Ackerman, one of the keepers, testified before the House of Commons, which had the question of rebuilding the prison before it, that in the spring of 1750, the jail distemper had spread to the Sessions House, now the Old Bailey, and had caused the death, in addition to two Judges, and the Lord Mayor already alluded to, of several of the jury and others to the number of over sixty persons.

The surroundings of Newgate are full of historical memories. Just off Giltspur street, but a step away, is Cock lane, where the ghost walked. p. 36 Along Newgate street, going from the Old Bailey to Cheapside, was the noble old charity of Christ's Hospital, otherwise famous as the Blue-Coat School, rich in works of art and richer in the recollections of such scholars within its cloisters as Coleridge, Charles Lamb, Leigh Hunt, Richardson, who wrote "Clarissa Harlowe," and many more. Along the same street opens Queen's Head Passage, in which Dolly's chop-house, which is a part of the commercial history of England, stands, and Ivy Lane, where Dr. Johnson established his club of that name. Newgate Market, between Newgate street and Paternoster Row, is the great meat market of London. It is what is known as the carcass market, and for many years was the chief source of slaughtered meat supply to the retail butchers of London. At a certain hour of the morning Newgate street was a veritable butchers' exchange. Newgate market was originally a meat market, but its convenient proximity to Smithfield, which lies on the other side of Newgate, only a few streets off, led to its conversion to its later uses. Smithfield was the historic cattle market of London. Here in the past were slaughtered beasts for food, and men and p. 37 women for their opinions. The beasts had the better part of the bargain. They were killed before they were cooked. The human victims of Smithfield Shambles were roasted and boiled alive. In chapter 21 of "Oliver Twist" we find a description of Smithfield when Sykes is carrying Oliver off to assist in the burglary at Chertsey.

"It was market morning. The ground was covered nearly ankle deep with filth and mire, and a thick steam

perpetually rising from the reeking bodies of the cattle, and mingling with the fog, which seemed to rest upon the chimney tops, hung heavily above. All the pens in the centre of the large area, and as many temporary ones as could be crowded into the vacant space, were filled with sheep; tied up to posts by the gutter side were long lines of beasts and oxen three or four deep. Countrymen, butchers, drovers, hawkers, boys, thieves, idlers, vagabonds of every low grade, were mingled together in a dense mass; the whistling of the drovers, the barking of the dogs, the bellowing and the plunging of the oxen, the bleating of the sheep, the grunting and the squeaking of the pigs, the cries of the hawkers, the shouts, oaths, and quarreling on all sides, the ringing of bells and roar of voices that issued from every public house, the crowding, pushing, driving, beating, p. 38 whooping, yelling, the hideous and discordant din that resounded from every corner of the market, and the unwashed, unshaven, squalid and dirty figures constantly running to and fro, and bursting in and out of the throng, rendered it a stunning and bewildering scene which quite confounded the senses."

It may be remembered too, vide "Great Expectations," chapter 20, that when Pip came up to London to find his guardian, Mr. Jaggers, he beguiled that time while awaiting his return to his office by wandering about the neighborhood, and so "came into Smithfield, and the shameful place being all asmeared with filth and fat and blood and foam, seemed to stick to me. So I rubbed it off with all possible speed by turning into a street where I saw the great black dome of St. Paul's bulging at me from behind a grim stone building which a bystander said was Newgate prison." Whenever he writes of the jail, he does so in the same spirit. His earliest impressions of it struck the keynote for his whole life's view of it. What those early impressions were one may discover in that paper of the "Sketches by Boz" which, in their collected shape, bears the number 24, and has for title, "Criminal Courts."

“We shall never forget the mingled feelings of awe and respect with which we used to gaze on the exterior of Newgate in our schoolboy days. How dreadful its rough, heavy walls, and how massive the doors appeared to us—the latter looking as if they were made for the express purpose of letting people in and never letting them out again. Then the fetters over the debtor’s door, which we used to think were a bona fide set of irons just hung up there for convenience sake, ready to be taken down at a moment’s notice and rivetted on the limbs of some refractory felon. We were never tired wondering how the hackney coachman on the opposite stand could cut jokes in the presence of such horrors, and drink pots of half-and-half so near the last drop.

“Often have we strayed here in session’s time to catch a glimpse of the whipping place or that dark building on one side of the yard in which is kept the gibbet with all of its dreadful apparatus, and on the door of which we half expected to see a brass plate with the inscription, ‘Mr. Ketch,’ for we never imagined that the distinguished functionary could by possibility live anywhere else. The days of those childish dreams have passed away, and with them many other boyish ideas of gayer nature. But we shall retain so much of our original feeling that to this hour we never pass the building without something like a shudder.”

CHAPTER II.

NEWGATE WITHIN.

THE entrance to Newgate is through the keeper's lodge, which, with the house in which the keeper lives, occupies the centre of what has been well called "this vast quarry of stone." It fronts on the Old Bailey. The prisoner's quarters are in the wings, which extend from either side of the keeper's quarters. In the gloomy office, men with that indescribable prison air all such officials bear, lounge about, and come and go on business. There is iron everywhere, from the huge bolts on the outer doors, and the door inside of them, to the barred windows and other doors beyond number, that open and shut with a sullen clangor that goes echoing through the stone passages as if it would never die away. The smell of the jail is as powerful in its way as these evidences of its actual strength. It blows into your face in a strong breath when the door opens for you, and you find it lingering about you hours after your visit has been made. Some scientist ought to analyze this odor of the prison. It is unique. A soldier's barracks, a hospital, a ship's forecastle—all places, in short, where men live in close quarters—have an odor that tells of their origin; but the scent of the jail is different from all, and as horrible as the thing it recalls to you whenever you breathe it, or fancy you do.

"What London pedestrian is there," writes Dickens, in chapter 24 in the "Sketches by Boz," "who has not, at some time or other, cast a hurried glance through the wicket at which the prisoners are admitted into this gloomy mansion, and surveyed the few objects he could discern, with an indescribable feeling of curiosity. The thick door, plated with iron, and mounted with spikes just low enough to enable you to see leaning over them an ill-looking fellow, in a broad-brimmed hat, Belcher handkerchief and top-boots; with a

brown coat, something between a great-coat and a 'sporting' jacket, on his back, and an immense key in his left hand. Perhaps you are lucky enough to pass just as the gate is being opened; then, you see on the other side of the lodge another gate, p. 42 the image of its predecessor, and two or three more turnkeys, who look like multiplications of the first one, seated around a fire, which just lights up the white-washed apartment sufficiently to enable you to catch a glimpse of these different objects." In the next paper of the same series, he conducts us within the lodge. "One side is plentifully garnished with a choice collection of heavy sets of irons, including those worn by the redoubtable Jack Sheppard—genuine; and those said to have been graced by the sturdy limbs of the no less celebrated Dick Turpin—doubtful. From this lodge a heavy oaken gate, bound with iron, studded with nails of the same material, and guarded by another turnkey, opens on a few steps, if we remember right, which terminate in a narrow and dismal stone passage, running parallel with the Old Bailey and leading to the different yards, through a number of tortuous and intricate windings, guarded in their turn by huge gates and gratings, whose appearance is sufficient to dispel at once the slightest hope of escape that any newcomer may have entertained; and the very recollection of which, on eventually traversing the place again, involves one in a maze of confusion."

p. 43

The old Newgate which the Gordon rioters sacked was a horrible place. The cells were mere black caves, which riddled the tremendous masonry like a stone honeycomb. In these at one time, while a contagious fever was raging, 800 prisoners were confined. The captives were packed in these dens like slaves in the hold of their prison-ship. Mrs. Frye describes the women as "swearing, gaming, fighting, singing, dancing, drinking, and dressing up in men's clothes," and as late as 1838 gambling with cards, dice and draughts was common among the male prisoners. Jail distempers now and then purged this sink of vileness of a portion of its inmates, till at last, in 1858, the reconstruction of its cellular system was completed. Even

with that, however, Newgate is anything but a perfect jail. In the earlier Dickens era it preserved many of its ancient characteristics. In “Great Expectations,” when Wemmick takes Pip to visit it, we read: “At that time gaols were much neglected, and the period of exaggerated reaction consequent on all public wrong-doing—and which is always its longest and heaviest punishment—was still far off. So, felons were not lodged and fed p. 44 better than soldiers (to say nothing of paupers), and seldom set fire to their prisons with the excusable object of improving the flavor of their soup. It was visiting time when Wemmick took me in; and a potman was going his rounds with beer; and the prisoners behind the bars in the yards were buying beer, and talking to friends; and a frowsy, ugly, disorderly, depressing scene it was.” The earlier description, “A Visit to Newgate,” in the Boz “Sketches,” thus depicts the women’s side of the jail:

“The buildings in the prison—or in other words the different wards—form a square, of which the four sides abut respectively on the Old Bailey, the old College of Physicians (now forming a part of Newgate Market), the Sessions House and Newgate street. The intermediate space is divided into several paved yards, in which the prisoners take such air and exercise as can be had in such a place. These yards, with the exception of that in which the prisoners under the sentence of death are confined, run parallel with Newgate street, and consequently from the Old Bailey, as it were, to Newgate Market. Turning to the right, we came to a door composed of thick bars of wood, through which were discernible, passing to and fro in a narrow yard, some twenty women. One side of this yard is railed at a considerable p. 45 distance, and formed into a kind of iron cage, about five feet and ten inches in height, roofed at the top, and defended in the front by iron bars, from which the friends of the female prisoners communicate with them. Two or three women were standing at different parts of the grating conversing with their friends, but a very large portion of the prisoners

appeared to have no friends at all, beyond such of their old companions as might happen to be within the walls. We were conducted up a clean and well lighted flight of stone steps to one of the wards. A description of one is a description of the whole.

“It was in a spacious, bare, whitewashed apartment, lighted, of course, by windows looking into the interior of the prison, but far more light and airy than one could reasonably expect to find in such a situation. There was a large fire, with a deal table before it, round which ten or a dozen women were seated on wooden forms at dinner. Along both sides of the room ran a shelf; below it, at regular intervals, a row of large hooks were fixed in the wall, on each of which was hung the sleeping mat of a prisoner; her rug and blanket being folded up, and placed on the shelf above. At night these mats are placed upon the floor, each beneath the hook on which it hangs during the day; and the ward is made to thus answer the purposes both of a day room and a sleeping p. 46 apartment. Over the fireplace was a large sheet of pasteboard, on which were displayed a variety of texts from Scripture, which were also scattered about the room in scraps about the size and shape of the copy slips which are used in schools. On the table was a sufficient provision of a kind of stewed beef and brown bread, in pewter dishes which are kept perfectly bright, and displayed on shelves in great order and regularity when not in use.

“In every ward of the female side a wards-woman is appointed to preserve order, and a similar regulation is adopted among the males. The wards-men and wards-women are all prisoners, selected for good conduct. They alone are allowed the privilege of sleeping on bedsteads: a small stump bedstead being placed in every ward for the purpose.”

This, in itself, was a vast improvement on the style of the last century in Newgate. Then the prisoner had no comfort unless he paid roundly for it. His cell contained a stone bench

or two, on which the first comer might make his bed. The rest slept on the floor. Once in a great while a truss of straw was tossed in to them, as it might have been to a beast in a stall. This straw remained until it rotted to a pulp. Then another truss was used to scatter over it. So, in time, the prisoners slept p. 47 on a veritable dunghill, the compost being generally left to fester till it bred a fever, when it would be carted off, to disseminate the germs of disease which it had engendered, outside the jail walls; and the same process was begun over again. In the matter of cleanliness a change for the better had been made in Dickens's time; but one great evil of the jail was the herding together of the prisoners in the wards. Here the possibly innocent learned evil lessons from the guilty; the depraved could deprave those not yet wholly debased; the gaol became, in short, not so much a place of punishment for crime as a powerful breeder of it, and many a man and boy, and woman and girl, who went into Newgate for a trivial offense, emerged from it a full-fledged and incorrigible lawbreaker. So outrageous did this condition of things become that many thoughtful men began seriously to question whether the means of restricting crime, as practiced in Newgate, were not really worse than the crime itself. In the sketch already quoted, Dickens says:

“They (the men's wards) are provided, like the wards of the women's side, with mats and rugs, which are disposed of in the same manner during p. 48 the day; the only very striking difference between their appearance and that of the wards inhabited by the women is the utter absence of employment. Huddled on two opposite forms by the fireside sit twenty men, perhaps; here a boy in livery; there a man in a rough great-coat and top-boots; further on, a desperate-looking fellow in his shirtsleeves, with an old Scotch cap upon his shaggy head; near him again, a tall ruffian in a smock-frock; next to him a miserable being of distressed appearance, with his head resting on his hand—all alike in one respect, all idle and listless; when they do leave the fire, sauntering moodily about,

lounging in the windows, or leaning against the wall, vacantly swinging their bodies to and fro. With the exception of an old man reading a newspaper, in two or three instances this was the case in every ward we entered. The only communication these men have with their friends is through two close iron gratings, with an intermediate space of about a yard in width between the two, so that nothing can be handed across, nor can the prisoner have any communication by touch with the person who visits him. The married men have a separate grating at which to see their wives, but its construction is the same.”

When the prisoners had visitors a keeper always sat in the space between the gratings, so that private communication was practically p. 49 impossible. The only exception was made in favor of lawyers in visiting their clients; but prisoners of note could secure the privilege of privacy through the pressure of official influence on the head keeper. In fact, during later years an effort, only partially successful, was made in Newgate to grade the prisoners according to their criminal standard, and to keep the classes apart. So, persistent and desperate offenders were assigned to one ward and those less confirmed in crime to another, while boys and youths were separated from the older prisoners, whose influence on them could not be but for evil. Under the more humane management of the present century Newgate was even provided with a school. “A portion of the prison,” says Boz, in his “Visit,” “is set apart for boys under fourteen years of age.” “In a tolerable sized room, in which were writing materials and some copybooks, was the school-master with a couple of his pupils; the remainder having been fetched from an adjoining apartment, the whole were drawn up in a line for our inspection. There were fourteen of them in all, some with shoes, some without; some in pinafores without jackets, others in jackets p. 50 without pinafores, and one in scarce anything at all. The whole number, without an exception, we believe, had been committed for trial on charges of pocket-picking; and fourteen such terrible little faces we

never beheld. There was not a glance of honesty, not a wink expressive of anything but the gallows and the hulks, in the whole collection. As to anything like shame or contrition, that was entirely out of the question. They were evidently quite gratified at being thought worth the trouble of looking at; their idea appeared to be that we had come to see Newgate as a grand affair, and that they were an indispensable part of the show; and every boy as he ‘fell in’ to the line actually seemed as pleased and important as if he had done something excessively meritorious in getting there at all.”

Dickens had made a close study of this type of London gamin, as we have discovered in his Artful Dodger, Master Bates, and other demoralizing and diverting characterizations. In the Boz sketch called “Criminal Courts” he describes the trial of such an imp at the Old Bailey court:

“A boy of thirteen is tried, say, for picking p. 51 the pocket of some subject of Her Majesty, and the offense is about as clearly proved as an offense can be. He is called upon for his defence, and contents himself with a little declamation about the jurymen and his country; asserts that all the witnesses have committed perjury, and hints that the police force generally have entered into a conspiracy against him. However probable his statement may be, it fails to convince the Court, and some such scene as the following takes place:

“Court: Have you any witnesses to speak for your character, boy?

“Boy: Yes, my Lord; fifteen gen’lm’n is a vaten outside, and vos avaten all day yesterday, vich they told me the night afore my trial vos a coming on.

“Court: Inquire for these witnesses.

“Here a stout beadle runs out, and vociferates for the witness at the very top of his voice; for you hear his cry grow fainter and fainter as he descends the steps into the courtyard below. After an absence of five minutes he returns, very warm and hoarse, and informs the Court of what he knew perfectly well before—namely, that there

are no such witnesses in attendance. Hereupon the boy sets up a most awful howling, screws the lower part of the palms of his hands into the corners of his eyes, and endeavors to look the picture of injured innocence. The jury at once find him 'guilty,' p. 52 and his endeavors to squeeze out a tear are redoubled. The governor of the gaol then states, in reply to an inquiry from the bench, that the prisoner has been under his care twice before. This the urchin resolutely denies in some such terms as: 'S'elp me, gen'lm'n, I never vos in trouble afore—indeed, my Lord, I never vos. It's all a howen to my having a twin brother, vich has wrongfully got into trouble, and vich is so exactly like me, that no one ever knows the difference atween us.'

"This representation, like the defence, fails in producing the desired effect, and the boy is sentenced, perhaps, to seven years' transportation. Finding it impossible to excite compassion, he gives vent to his feelings in an imprecation bearing reference to the eyes of 'old big vig,' and as he declines to take the trouble of walking from the dock, is forthwith carried out, congratulating himself on having succeeded in giving everybody as much trouble as possible."

In a similar vein, when the Artful Dodger falls into the toils ("Oliver Twist," Chapter 43) he asserts himself.

"It was indeed Mr. Dawkins, who, shuffling into the office with the big coat sleeves tucked up as usual, his left hand in his pocket, and his hat in his right hand, preceded the gaoler, with a rolling gait altogether indescribable, and taking p. 53 his place in the dock, requested in an audible voice to know what he was placed in 'that 'ere disgraceful situation for.'

"'Hold your tongue, will you?' said the gaoler.

"'I'm an Englishman, ain't I?' rejoined the Dodger. 'Where are my privileges?'

“‘You’ll get your privileges soon enough,’ retorted the gaoler, ‘and pepper with ’em.’

“‘We’ll see what the Secretary of State for the Home Affairs has got to say to the beaks, if I don’t,’ replied Mr. Dawkins.

“‘Now then. Wot is this here business? I shall thank the madg’strates to dispose of this little affair, and not to keep me while they read the paper, for I’ve got an appointment with a gentleman in the city, and as I’m a man of my word and very punctual in business matters, he’ll go away if I ain’t there to my time, and then p’raps there won’t be an action for damages against them as kept me away. Oh, no, certainly not.’

“At this point the Dodger, with a show of being very particular with a view to the proceedings to be had thereafter, desired the gaoler to communicate ‘the names of them two files as was on the bench,’ which so tickled the spectators, that they laughed almost as heartily as Master Bates could have done if he had heard the request.

“‘Silence there,’ cried the gaoler.

p. 54

“‘What is this?’ inquired one of the magistrates.

“‘A pocket-picketing case, your worship.’

“‘Has the boy ever been here before?’

“‘He ought to have been, a many times,’ replied the gaoler. ‘He has been pretty well everywhere else. I know him well, your worship.’

“‘Oh, you know me, do you?’ cried the Artful, making a note of the statement. ‘Werry good. That’s a case of deformation of character, any way.’

“Here there was another laugh, and another cry for silence.

“‘Now then, where are the witnesses?’ said the clerk.

“‘Ah, that’s right,’ added the Dodger. ‘Where are they? I should like to see ’em.’

“This wish was immediately gratified, for a policeman stepped forward who had seen the prisoner attempt the

pocket of an unknown gentleman in the crowd, and indeed take a handkerchief therefrom, which, being a very old one, he deliberately put back again, after trying it on his own countenance. For this reason he took the Dodger into custody as soon as he could get near him, and the said Dodger being searched, had upon his person a silver snuff-box, with the owner's name engraved upon the lid. This gentleman had been discovered upon reference to the Court Guide, and being p. 55 then and there present, swore that the snuff-box was his, and that he had missed it on the previous day, the moment he had disengaged himself from the crowd before referred to. He had also remarked a young gentleman in the throng, particularly active in making his way about, and that the young gentleman was the prisoner before him.

“‘Have you anything to ask this witness, boy?’ said the magistrate.

“‘I wouldn't abase myself by descending to hold no conversation with him,’ replied the Dodger.

“‘Have you anything to say at all?’

“‘Do you hear his worship ask if you've anything to say?’ inquired the gaoler, nudging the silent Dodger with his elbow.

“‘I beg your pardon,’ said the Dodger, looking up with an air of abstraction.

“‘Did you mean to say anything, you young shaver?’

“‘No,’ replied the Dodger, ‘not here, for this ain't the shop for justice; besides which, my attorney is a breakfasting this morning with the Wice-President of the House of Commons; but I shall have something to say elsewhere, and so will he, and so will a wery numerous and 'spectable circle of acquaintances as'll make them beaks wish they'd never been born, or that they'd got their footman to hang 'em up to their p. 56 own hat-pegs afore they let 'em come out this morning to try it upon me. I'll _____,’

“‘There. He’s fully committed,’ interposed the clerk. ‘Take him away.’

“‘Oh, ah. I’ll come on,’ replied the Dodger, brushing his hat with the palm of his hand. ‘Ah (to the bench) it’s no use your looking frightened; I won’t show you no mercy, not a ha’porth of it. You’ll pay for this, my fine fellers. I wouldn’t be you for something; I wouldn’t go free now, if you was to fall down on your knees and ask me. Here, carry me off to prison. Take me away.’

“With these last words, the Dodger suffered himself to be led off by the collar, threatening, till he got into the yard, to make a parliamentary business of it, and then grinning in the officer’s face with glee and self approval.”

To such scholars as these, all the schools that could be crowded into Newgate would be of no avail. Their biographies are summed up by Magwitch, in “Great Expectations,” who, blandly admitting to have been brought up to be “a warmint,” says:

“‘In gaol and out of gaol, in gaol and out of gaol, in gaol and out of gaol. That’s my life. I’ve been done everything to, pretty well—except hanged. I’ve been locked up as much as a silver tea-kettle. I’ve been carted here p. 57 and carted there, and put out of this town and put out of that town. I’ve no more notion where I was born than you have, if so much. I first became aware of myself down in Essex, a-thieving turnips for a living. Summun had run away from me—a man, a tinker—and he’d took the fire with him and left me very cold.

“‘I knowed my name to be Magwitch, christened Abel. How did I know it? Much as I knowed the birds’ names in the hedges to be chaffinch, sparrer, thrush. I might have thought that it was all lies together, only, as the birds’ names come out true, I suppose mine did.

“‘So fur as I could find, there warn’t a soul that see young Abel Magwitch, with as little on him as in him, but what caught fright at him, and either drove him off or took

him up. I was took up, took up, took up, to that extent that I reg'larly growed up took up.'”

One of the most curious episodes of Newgate is connected with the hanging of the Rev. W. Dodd, for forgery, on Friday, June 6, 1777. The clerical malefactor preached his own funeral sermon in the chapel of the prison before he was led out to die, the text being from Acts XV, 23. The theatre of this remarkable valedictory went up in the smoke of the Gordon Riots, but there is a chapel in the reconstructed jail: “situated,” p. 58 says Boz, “at the back of the governor’s house; the latter having no windows looking into the interior of the prison. Whether the associations connected with the place—the knowledge that here a portion of the burial is, on some dreadful occasions, performed over the quick and not over the dead—cast over it a still more gloomy and sombre air than art has imparted to it, we know not, but its appearance is very striking. The meanness of its appointments—the bare scanty pulpit, with the paltry painted pillars on either side—the women’s gallery with its great heavy curtains—the men’s with its unpainted benches and dingy front—the tottering little table at the altar, with the commandments on the wall above it, scarcely legible through lack of paint, and dust and damp—so unlike the velvet and gilding, the marble and the wood of a modern church—are strange and striking. There is one object, too, which rivets the attention and fascinates the gaze, and from which we may turn horror-stricken in vain, for the recollection of it will haunt us waking and sleeping for a long time afterward. Immediately below the reading desk, on the floor of the chapel, and forming p. 59 the most conspicuous object in the little area, is the ‘condemned pew’: A huge black pen in which the wretched people, who are singled out for death, are placed on the last Sunday preceding their execution, in sight of all their fellow prisoners, from many of whom they may have been separated but a week before, to hear prayers for their own souls, to join in the responses of their own burial service, and to listen to an address warning their recent companions to take example by their own fate and urging themselves, while there is yet time—

nearly four-and-twenty hours—to ‘turn and flee from the wrath to come.’ At one time—and at no distant period either—the coffins of the men about to be executed, were placed in that pew, upon the seat by their side, during the whole service.” The chapel has been rearranged since the time in which Boz wrote, and the ghastliest part of its show done away with.

In the condemned ward Boz found “five-and-twenty or thirty prisoners, all under sentence of death, awaiting the result of the recorder’s report—men of all ages and appearances, from a hardened old offender with swarthy face and grizzly beard of three days’ p. 60 growth, to a handsome boy not fourteen years old, and of singularly youthful appearance even for that age, who had been condemned for burglary.” It must be remembered that they hanged men for all sorts of offenses in England then, which made the population of the condemned ward abundant around sessions time, when the trials were on. The death penalty was as common then as it is now rare in its infliction. “The room was large, airy and clean. One or two decently dressed men were brooding with a dejected air over the fire; several little groups of two or three had been engaged in conversation at the upper end of the room, or in the windows; and the remainder were crowded around a young man seated at a table, who appeared to be engaged in teaching the younger ones to write. On the table lay a Testament, but there were no tokens of its having been in recent use. In the press-room below were the men, the nature of whose offense rendered it necessary to separate them, even from their companions in guilt. It is a long sombre room, with two windows sunk in the stone wall, and here the wretched men are pinioned on the mornings of their execution, before moving toward the scaffold.”

p. 61

“A few paces up the yard,” he goes on, “and forming a continuation of the building, lie the condemned cells. The entrance is by a narrow and obscure staircase, leading to a dark passage, in which a charcoal stove casts a lurid light over the objects in its immediate vicinity, and diffuses something like a

warmth around. Prior to the recorder's report being made, all the prisoners under the sentence of death are removed from the day room at five o'clock in the afternoon, and locked up in these cells, where they are allowed a candle until ten o'clock; and here they remain until seven the next morning. When the warrant for the prisoner's execution arrives, he is removed to the cells, and confined in one of them until he leaves it for the scaffold. He is at liberty to walk in the yard; but both in the walks and in his cell, he is constantly attended by a turnkey, who never leaves him on any pretence." The cell was "a stone dungeon eight feet long by six feet wide, with a bench at the upper end, under which were a common rug, a Bible and a prayer-book. An iron candle-stick was fixed into the wall at the side; and a small high window at the back admitted as much air and p. 62 light as could struggle in between a double row of heavy, crossed iron bars." It was in one of these dens ("Oliver Twist," Chapter 52) that Fagin spent his last hours.

"They led him through a paved room under the court, where some prisoners were waiting till their turns came, and others were talking to their friends, who crowded around a gate which looked into the open yard. There was nobody there to speak to him; but, as he passed, the prisoners fell back to render him more visible to the people who were clinging to the bars; and they assailed him with opprobrious names, and screeched and hissed. He shook his fist, and would have spat upon them; but his conductors hurried him on, through a gloomy passage lighted by a few dim lamps, into the interior of the prison.

"Here he was searched, that he might not have about him the means of anticipating the law; this ceremony performed, they led him to one of the condemned cells, and left him there—alone.

"He sat down on a stone bench opposite the door, which served for a seat and bedstead; and casting his bloodshot eyes upon the ground, tried to collect his thoughts. After a while, he began to remember a few disjointed fragments of what the judge had said; though it

seemed to him, at the time, that he could not hear a p. 63 word. These gradually fell into their proper places, and by degrees suggested more; so that in a little time he had the whole almost as it was delivered. To be hanged by the neck, till he was dead—that was the end. To be hanged by the neck till he was dead.

“As it came on very dark, he began to think of all the men he had known who had died upon the scaffold; some of them through his means. They rose up, in such quick succession, that he could hardly count them. He had seen some of them die—and had joked, too, because they died with prayers upon their lips. With what a rattling noise the drop went down; and how suddenly they changed from strong and vigorous men to dangling heaps of clothes.

“Some of them might have inhabited that very cell—sat upon that very spot. It was very dark; why didn’t they bring a light? The cell had been built for many years. Scores of men must have passed their last hours there. It was like sitting in a vault strewn with dead bodies—the cap, the noose, the pinioned arms, the faces that he knew, even beneath that hideous veil. Light—Light.

“At length, when his hands were raw with beating against the heavy door and walls, two men appeared: one bearing a candle, which he thrust into an iron candle-stick fixed against the wall; the other dragging a mattress on p. 64 which to pass the night; for the prisoner was to be left alone no more.

“Then came night—dark, dismal, silent night. Other watchers are glad to hear the clocks strike, for they tell of life and coming day. To the Jew they brought despair. The boom of every iron bell came laden with one deep, hollow sound—Death. What availed the noise and bustle of cheerful morning, which penetrated even there, to him? It was another form of knell, with mockery added to its warning.

“The day passed off—day. There was no day; it was gone as soon as come—and night came on again; night so

long, and yet so short, long in its dreadful silence, and short in its fleeting hours. At one time he raved and blasphemed; and at another howled and tore his hair. Venerable men of his own persuasion had come to pray beside him, but he had driven them away with curses. They renewed their charitable efforts, and he beat them off.

“Saturday night. He had only one more night to live, and as he thought of this, the day broke—Sunday.

“It was not until the night of this last awful day, that a withering sense of his helpless, desperate state came in its full intensity upon his blighted soul; not that he had ever held any defined or positive hope of mercy, but that he had never been able to consider more p. 65 than dim probability of dying so soon. He had spoken little to either of the two men, who relieved each other in attendance upon him; and they, for their parts, made no efforts to arouse his attention. He sat there, awake, but dreaming. Now he started up, every minute, and with gasping mouth and burning skin, hurried to and fro in such a paroxysm of fear and wrath that even they—used to such sights—recoiled from him with horror. He grew so terrible, at last, in all the tortures of his evil conscience that one man could not bear to sit there, eyeing him alone; and so the two kept watch together.

“He cowered down upon his stone bed, and thought of the past. He had been wounded with some missiles from the crowd on the day of his capture, and his head was bandaged with a linen cloth. His red hair hung down upon his bloodless face; his beard was torn and twisted into knots; his eyes shone with a terrible light; his unwashed flesh crackled with the fever that burnt him up. Eight—nine—ten. If it was not a trick to frighten him, and those were the real hours treading on each other’s heels, where would he be, when they came around again? Eleven! Another struck, before the voice of the previous hour had

ceased to vibrate. At eight, he would be the only mourner in his own funeral train; at eleven——

“Those dreadful walls of Newgate, which had p. 66 hidden so much misery and unspeakable anguish, not only from the eyes, but, too often and too long, from the thoughts, of men, never held so dreaded a spectre as that. The few who lingered as they passed, and wondered what the man was doing, who was to be hung to-morrow, would have slept but ill that night if they could have but seen him.

“From early in the evening until nearly midnight, little groups of two and three presented themselves at the lodge-gate, and inquired, with anxious faces, whether any reprieve had been received. These being answered in the negative, communicated the welcome intelligence to the clusters in the street, who pointed out to one another the door from which he must come out, and showed where the scaffold would be built, and, walking with unwilling steps away, turned back to conjure up the scene. By degrees they fell off, one by one; and for an hour in the dead of the night, the street was left to solitude and darkness.”

When Mr. Brownlow and Oliver appeared at the wicket, and presented an order of admission to the prisoner, signed by one of the Sheriffs, they were immediately admitted to the lodge.

“The condemned criminal was seated on his bed, rocking himself from side to side, with a countenance more like that of a snared beast p. 67 than the face of a man. His mind was evidently wandering to his old life, for he continued to mutter, without appearing conscious of their presence otherwise than as a part of his vision.

“‘Fagin,’ said the gaoler.

“‘That’s me,’ cried the Jew, falling, instantly into the attitude of listening he assumed upon his trial. ‘An old man, my Lord; a very old man.’

“‘Here,’ said the turnkey, laying his hand upon his breast to keep him down. ‘Here’s somebody wants to see you, to ask you some questions, I suppose. Fagin, Fagin, are you a man?’

“‘I shan’t be one long,’ replied the Jew, looking up with a face retaining no human expression but rage and terror. ‘Strike them all dead! What right have they to butcher me?’”

Since hanging by wholesale went out in England, Newgate has had no use for condemned wards, nor for its great number of condemned cells. The former are now broken up into cells, or used as exercise rooms or offices. Most of the latter are now punishment cells, in which refractory prisoners are confined. The demoralizing system of confinement in gangs has been done away with also, the cells in which the prisoners froze in cold weather have been made comfortable, and the standard of the management p. 68 of the jail raised in every way. Such prisoners as may be condemned to death—there are only a few a year now, where in Dickens’s boyhood there were several every week—are kept apart from their fellows and from each other. They are confined in an ordinary cell until they are convicted. Then they are transferred to a strong cell in the old condemned cell ward, and thence they travel to the scaffold.

Between the Old Bailey Court House and the condemned ward of Newgate is a yard called the Press Yard. The name has a hideous origin. This spot was for many years the scene of one of the most terrible tortures ever inflicted by the cruelty of man upon his kind, the awful torture of “Pressing to Death.” This torture was imposed on prisoners held for higher crimes, like treason and felonies, who refused to answer in court. Nowadays, this would be construed into contempt of court. Until a century ago it was held an offense so hideous as to warrant death by torture. Nowadays we do not ask a prisoner to criminate himself. Then, if he did not, he was tortured; if he did he was punished anyway. The prisoner p. 69 condemned to be pressed was stripped naked, except, for decency’s sake, a cloth around the loins, and laid on his back on the pavement. Then

iron weights were piled upon a board placed on his body, in increasing number, and on a diet of three morsels of bread a day and three draughts of water, he was left to perish miserably. He never needed a full day's rations. Sometimes he lasted for hours, and at others, as in the case of Mayor Strangeways, who was pressed for the murder of John Fussell in 1659, he died in a few moments. This poor wretch was stoned by the mob in the prison yard while undergoing the torture. Highwaymen, house-breakers, forgers, utterers of forged and counterfeit money, as well as murderers and traitors, were pressed to death. Brutal and callous as the era was, the shocking practice excited such denunciation in time that the victims were finally subjected to the torture privately in the room known as the Press Room whose door opens into the Press Yard. But the practice of pressing was kept up until as late as 1770.

The Press Yard to this day is devoted to quite as gloomy and deadly, if less revolting, service p. 70 under sanction of the law. It is here that the executions of Newgate are performed. The gallows is set up close to the door out of which the prisoner is brought. There is no march to the gibbet through a throng of spectators as in most of our own jails. The doomed man gets his last glimpse of the sky through a stone funnel down which no ray of sunlight ever finds its way. As far as I remember, from my London days, the only sign the outer world has of the work going on within the prison walls is the hoisting of a black flag over the lodge, and I know not if even this ceremonial is still observed. From the gallows to the grave in Newgate used to be but a step. There was an old burying ground in the prison, now disused, which was opened in 1820. Thistlewood and the other Cato Street Conspirators were the first criminals buried in it. They were buried in the night on the day of their execution, without services, and many others like them in after years. A pit and a shroud of quicklime were the appropriate Newgate epitaph.

The ingenious fancy of Mr. Ainsworth has made Jack Sheppard's escape from Newgate one of the chief episodes of his famous book. The p. 71 simple facts of his hero's evasion

from the gaol are much less romantic, considering the number of prisoners it held. The escapes from Newgate were very few, and in almost every instance they owed a great measure of their success to the connivance of officials within the walls. Until the tidal wave of prison reform swept it clean of its old, corrupt practices, Newgate was managed largely for the benefit and profit of its guardians, from the keeper down. Each official was an adept at the art of extortion, and every palm that held a key was troubled with the itch. The prisoner could purchase most things he might desire, and even the chance of liberty was not beyond price. It was only the chance to be sure; his keeper would wink at the effort, but he must take the risk of being stopped upon his way by others, unless he could fairly buy his passage from his dungeon to the lodge gate. A few—a very few—did this, and got away. Generally the escapes were mere attempts, frustrated before the last barrier was passed. The most remarkable escape made from the prison, because it was accomplished without aid within or without the walls, was that of the Sweep. This ruffian, from p. 72 practice in his trade of climbing chimneys, actually contrived to scale the rough stone wall in an angle of one of the jail yards, by working himself up with his back and feet, until he reached the leads, over which he made his way to the roof of a house in Newgate street, which he entered through the scuttle, and so went down stairs and into the street. Since that time the inner walls of Newgate have been smoothed, so that even a fly could not crawl up them, and spiked at the top to make assurance doubly sure.

CHAPTER III.

THE FLEET PRISON.

 ALF a century ago, a stroller about the London streets whose loiterings carried him to the Fleet Market, could not but notice in the brick wall that extended along what is now entitled Farringdon street, facing the market, a wide-grated window, set in a framework of granite blocks. Under the arched top of the framework, between it and the grating, a stone slab or panel bore the carved inscription: "Please Remember Poor Debtors, Having No Allowance." Through the grating one might look into a squalid, dark room, with a rough wooden bench fastened to one wall, and during the hours of daylight some miserable human creature, like a caged and starved beast, always glared from behind the bars upon the street, repeating, in the voice of wheedling mendicancy, the appeal cut in the stone above his head. There was a broad sill to the window, and an opening in the bars, like those of the p. 74 counter windows in a modern bank, through which the jailed beggar could pass out and draw in a wooden box, in which the charitably inclined might drop an obolus as they passed by.

This was what was called "the grate" of the Fleet Prison, one of the wickedest and most pestilential gaols that ever cursed the earth; and the grimmest satire upon this jail into which men were thrust for not paying money which they owed, was that among these debtors there were many whose absolute inability to pay was demonstrated by the fact that they would, literally, have starved there but for the chance charity of the public. Apropos of this point Dickens, in chapter xiv, volume II, of "Pickwick," says:

"The poor side of the debtors' prison is, as its name imports, that in which the most miserable and abject class

of debtors are confined. A prisoner, having declared upon the poor, pays neither rent nor chummage. His fees upon entering and leaving the gaol are reduced in amount, and he becomes entitled to a share of some small quantities of food—to provide which a few charitable persons have, from time to time, left trifling legacies in their wills. Most of our readers will remember that, until a very p. 75 few years past, there was a kind of iron cage in the wall of the Fleet Prison, within which was posted some man who, from time to time, rattled a money box, and exclaimed in a mournful voice: ‘Pray remember the poor debtors.’ The receipts of this box, when there were any, were divided among the poor prisoners, and the men on the poor side relieved each other in this degrading office.

“Although this custom has been abolished and the cage is now boarded up, the miserable and destitute condition of these unhappy persons remains the same. We no longer suffer them to appeal at the prison gates to the charity and compassion of the passers-by; but we still have unblotted on leaves of our statute-book, for the reverence and admiration of the succeeding ages, the just and wholesome law which declares that the sturdy felon shall be fed and clothed, and that the penniless debtor shall be left to die in starvation and nakedness. This is no fiction. Not a week passes over our heads but, in every one of our prisons for debt, some of these men must inevitably expire in the slow agonies of want, if they were not relieved by their fellow prisoners.”

The custom of beggary at the prison gate, it may as well be remarked here, was a relic of the ancient prison of the Fleet, to which allusion is made in several of the old English comedies. p. 76 Leigh Hunt, in his pleasant divagations upon London called “The Town,” remarks upon the practice in connection with Ludgate Prison, and, indeed, it was common to all the town jails in which debtors were incarcerated, without municipal provisions for their support. In the last century, as John Timbs tells us, there was additional provision for the relief

of the paupers of the prison, in what was known as the "Running Box." In this case a man ran to and fro in the neighboring streets to the prison, shaking a box, and begging passengers to put money into it for the poor prisoners in the Fleet, while on his back he carried a capacious covered basket, to hold such broken victuals as the charitable might choose to spare for him.

Hard by the paupers' grating of the Fleet was a grimy and gloomy doorway, heavily framed in stone, which, like the brick of the prison wall, sweated a sort of fungoid scum, originally a rank, unhealthy green in color, but, thanks to London fogs and soft-coal smoke, soon converted into the semblance of a thin glaze or varnish of liquid soot. The door stone was worn as smooth as glass, and even in the fairest weather p. 77 was perilously greased with street slime. On either panel of the doorway was carved a huge numerical figure. The rude wit of the town called this the "Fleet Halter," which, once it was about a man's neck, held him almost as tight and fast as its rival noose at Tyburn. Fastidious debtors who preferred to preserve a fiction of respectability in their correspondence, were wont to have their letters addressed to them at 9 Fleet Market, for 9 was the halter-hinting number of the gateway to the gaol.

It was through this gateway that the tipstaff preceded Mr. Pickwick, as you may read in chapter xii. of the second volume which chronicles that immortal gentleman's adventures, "looking over his shoulder to see that his charge was following close at his heels;" and in the gate-lodge, which they entered through a door at the left, Mr. Pickwick sat for his portrait to the assembled turnkeys, so that he might be remembered should he take the fancy to stroll out of the doors without a license. There was in this lodge "a heavy gate guarded by a stout turnkey with the key in his hand," and when Mr. Pickwick's likeness was completed, he passed through this inner gate, and p. 78 down a short flight of steps, and "found himself, for the first time in his life, within the walls of a debtor's prison."

The Fleet in those days consisted principally of one long brick pile, which ran parallel with the Fleet Market, now Farringdon street, with an open court around it, bounded by a lofty wall, over which, here and there, one could see the sooty chimney-tops and the smoky sky. The buildings were four stories in height above the ground, with a story half underground among the foundations. No architectural art had been wasted on the exterior of the structure, and no sanitary ingenuity or sentimental seeking after the comfort of the inmates had been expended upon the interior. The one aim of the constructors had been to so divide the space as to cram within it the greatest possible number of persons. To this end, each floor was traversed by a single hallway or passage, "a long narrow gallery, dirty and low, and very dimly lighted by a window at each remote end," on either hand of which opened doors of innumerable single rooms, which rarely, however, failed to do duty as lodgings for less than several tenants. The floors, as Mr. Tom Roker explained to Mr. p. 79 Pickwick when he inducted him into the prison, were distinguished as the hall flight, the coffee-room flight, the third flight and the top flight. All the rooms on these floors were let by the week, at prices adjusted to their presumed desirability and the capacity of the lessee's purse, and governed by the number of tenants who entered upon them.

The basement rooms, even, formed a source of revenue to the warden. This sunken story, which received its light from the low-browed windows whose sills were level with the slabs of the prison yard, was known as Bartholomew Fair. Here misery might welter in its offal at the fee of one-and-threepence a week if it still held itself above the abject degradation of the Common Side, whose inmates took their turn at begging at the grate. The Common Side was a building apart from the main range, which latter was known as the Warden Side. Here there was no rent to pay. The prisoners bunked in gangs, like emigrants on an ocean passage. As to Bartholomew Fair, let Dickens describe it himself (vide "Pickwick," chapter xiii, volume II):

“‘Oh!’ replied Mr. Pickwick, looking down p. 80 a dark and filthy staircase which appeared to lead to a range of damp and gloomy stone vaults beneath the ground, ‘And these, I suppose, are the little cellars where the prisoners keep their small quantities of coals? Unpleasant places to have to go down to, but very convenient, I daresay.’ ‘Yes, I shouldn’t wonder if they was convenient,’ replied Mr. Roker, ‘seeing that a few people live there pretty snug. That’s the Fair, that is!’ ‘My friend,’ said Mr. Pickwick, ‘you don’t really mean to say that human beings live down these wretched dungeons?’ ‘Don’t?’ replied Mr. Roker, with indignant astonishment; ‘why shouldn’t I?’ ‘Live down there?’ exclaimed Mr. Pickwick. ‘Live down there? Yes, and die down there, too, wery often.’”

Nominally, each prisoner in the Fleet on the Warden Side was entitled to a room at the charge of 1s. 3d. a week. Actually, however, he never got one on any floor above the level of Bartholomew Fair. Each room was made to quarter from two to four tenants in the space designed for one, so that it, at full seasons, actually produced at least a crown a week rental. This system, which was excused on the plea of overcrowding of the jail by commitments of the courts, was called “chummage,” and the system produced another curious practice of prison p. 81 life. If one or more prisoners occupied a room and another was “chummed” on them, they could buy him off by paying him a few shillings a week, and so keep the room to themselves. He, out of the money they paid him, paid in his turn for inferior quarters elsewhere. Thus, a prisoner who was willing to pay full rent for a room to the warden, and buy off anyone who might be chummed upon him, could have a dirty box of a chamber to himself, at the average cost of a first-class parlor and bedroom outside the walls. Prisoners who had been a certain number of years in the jail had a prescriptive right to a room to themselves, and most of these rented their apartments at good rates to new comers, and took beds for themselves in the common lodgings.

When Mr. Pickwick entered the Fleet as a resident (vide volume II, chapter xiv) he was chummed on “27 in the third,” whose door was to be distinguished by the likeness of a man being hung and smoking a pipe the while, done in chalk upon the panel. Not liking his company of three here he, as may be recalled, rented the room of a chancery prisoner, in which he settled down. For the use of this room he p. 82 paid £1 a week, and for the furniture, which he hired from a keeper, £1 3s. more. These figures may serve as an indication of the rates prevailing in the Fleet fifteen years before it was demolished. The episode of Mr. Pickwick’s investigatory experiences in this connection is worth quoting, as a part of the panorama of prison life. There was only one man in the room upon which he was chummed, and he “was leaning out of the window as far as he could without overbalancing himself, endeavoring, with great perseverance, to spit upon the crown of the hat of a personal friend upon the parade below.” He expressed his disgust at having had the newcomer chummed upon him, and summoned his two room-mates, who were a bankrupt butcher and a drunken chaplain out of orders, the expectoratory gentleman himself being a professional blackleg.

“‘It’s an aggravating thing, just as we got the beds so snug,’ said the chaplain, looking at the dirty mattresses, each rolled up in a blanket, which occupied one corner of the room during the day, and formed a kind of slab on which were placed an old cracked basin, ewer and soap-dish of common yellow earthenware with a blue flower; ‘very aggravating.’

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“Mr. Martin (the butcher) expressed the same opinion, in rather stronger terms.

“Mr. Simpson (the ’leg) after having let a variety of expletive adjectives loose upon society, without any substantive to accompany them, tucked up his sleeves and began to wash greens for dinner.

“While this was going on Mr. Pickwick had been eyeing the room, which was filthily dirty and smelt

intolerably close. There was no vestige of either carpet, curtain or blind. There was not even a closet in it. Unquestionably, there were but few things to put away if there had been one, but, however few in number, or small in individual amount, still, remnants of loaves, and pieces of cheese, and damp towels, and scraps of meat, and articles of wearing apparel, mutilated crockery, and bellows without nozzles, and toasting-forks without prongs, do present somewhat of an uncomfortable appearance when they are scattered about the floor of a small apartment, which is the common sitting and sleeping room of three idle men.

“‘I suppose that this can be managed somehow,’ said the butcher, after a pretty long silence. ‘What will you take to go out?’

“‘I beg your pardon,’ replied Mr. Pickwick, ‘what did you say? I hardly understood you.’

“‘What will you take to be paid out?’ said the butcher. ‘The regular chummage is two-and-six; will you take three bob?’

p. 84

“‘And a bender,’ suggested the clerical gentleman.

“‘Well, I don’t mind that; it’s only a twopence apiece more,’ said Mr. Martin; ‘What do you say now? We’ll pay you out for three-and-sixpence a week; come!’

“‘And stand a gallon of beer down,’ chimed in Mr. Simpson. ‘There!’

“‘And drink it on the spot,’ said the chaplain; ‘NOW!’

“After this introductory preface the three chums informed Mr. Pickwick, in a breath, that money was in the Fleet just what money was out of it; that it would instantly procure him almost anything he desired; and that supposing he had it, and had no objection to spend it; if he only signified his wish to have a room to himself, he might take possession of one, furnished and fitted to boot, in half an hour’s time.

“With this the parties separated, very much to their mutual satisfaction, Mr. Pickwick once more retracing his steps to the lodge, and the three companions adjourned to the coffee-room, there to expend the five shillings which the clerical gentleman, with admirable prudence and foresight, had borrowed of him for the purpose.

“‘I knowed it,’ said Mr. Roker with a chuckle, when Mr. Pickwick stated the object with which he had returned. ‘Lord, why didn’t you p. 85 say at first that you was willing to come down handsome?’”

Those who could afford to sleep well in the Fleet, as sleeping went in such places, might feed well enough, too. They could be served in the coffee-room, and if they preferred to eat in privacy, there was a cookshop in the prison; and there were, besides, messengers who could be sent on errands of purchase outside the walls. In every case the charges were extortionate, for the one object of the prison was to squeeze the debtor dry by fair means or foul. But when the law sanctions such outrages as the Fleet itself, the minor offenses by which the greater burden is mitigated to its victims may be condoned. There was a taproom in the prison where beer and wine were to be had, but the traffic in spirits was forbidden, and even the conveyance of them to the prisoners from without prohibited under heavy penalties; “and such commodities being highly prized by the ladies and gentlemen confined therein” (“Pickwick” volume II, chapter xvii), “it had occurred to some speculative turnkey to connive, for certain remunerative considerations, at two or three prisoners retailing p. 86 articles of gin for their own profit and advantage.” The spirit dispensaries were known in the jargon of the jail as “whistling-shops,” and what with the strong waters they provided, and the malt liquors of the taproom, it was safe to assume that the bulk of such prisoners in the Fleet as were not dying for the want of sufficient food were perishing of a superfluity of drink.

The poor debtors who still had the price of “a chamber-pot of coals” and a scrag of mutton, could have it in from the market and cook it for themselves in their rooms or, for a

penny or two, at the common kitchen in the prison-yard. In default of sufficient capital to this end they must live off bread and cheese, or cold meat, or hope, or, as many doubtless did, on the porter from the taproom. To secure the means of subsistence and indulgence they begged from the visitors. The sharper old residents borrowed from the shallower newcomers, and, as a matter of course, theft went hand in hand with mendicancy. Of this shadowy side of a picture, dark enough, in all conscience, in its lightest spots, Dickens gives us a glimpse in chapter xiv of volume II, where Mr. Pickwick p. 87 encounters Mr. Alfred Jingle on the Common Side, and Mr. Jeb Trotter, returning from pawning his master's last coat, with a scrap of meat for his dinner. And Mr. Jingle's own summary of the prevailing state of things at that period and place may serve as a description of the condition and prospects of his neighbors.

“Lived on a pair of boots—whole fortnight. Silk umbrella—ivory handle—week. Nothing soon—lie in bed—starve—die—inquest—little bone-house—poor prisoner—common necessities—hush it up—gentlemen of jury—warden's tradesmen—keep it snug—natural death—coroner's order—workhouse funeral—serve him right—all over—drop the curtain.”

In 1749 the son of the architect, Dance, who built old Buckingham House and Guy's Hospital, was imprisoned in the Fleet for debt. He wrote and published a poem called “The Humors of the Fleet,” which has an interest for comparison with what the prison became later. The book had a frontispiece showing the prison-yard, a newcomer treating the jailer and cook and others to drink; racket-players at their game; and in one corner of the yard a pump and a tree. When the Fleet was rebuilt after p. 88 the riots, there were two exercise grounds within the walls. One, the smaller, was on the side toward Farringdon street, denominated and called “The Painted Ground,” from the fact of its walls having once displayed the “semblances of various men-of-war in full sail, and other artistical effects, produced, in bygone days, by some

imprisoned draughtsman in his leisure hours.” On the other side of the prison was the larger yard where racket was played and games of skittles bowled beneath a shed. Here might be seen the characterless “characters” of the place, in which every prison is sure to abound. Smokers and other idlers loitered about the steps leading to the racket ground, draining their pots as they watched the game. Here Mr. Smangle “made a light and wholesome breakfast on a couple of cigars” Mr. Pickwick had paid for, and here Mr. Weller, with a pint of beer and the day before yesterday’s paper, divided his time between dipping into the news and the noggin, the skittle game and the affections of a young lady who was peeling potatoes at one of the jail windows, on that memorable morning when Mr. Stiggins called upon him and sampled the port wine p. 89 in the coffee-room snugery. Here you might hear the roar of the great babel without; and from the same point see one or two of its churches aspiring above the ‘chevaux-de-frise’ of the prison walls. There was a torrent-like fury about the busy hum of the town in contrast with the stagnant life within the brick walls; and, as if to keep up the mockery, they verged upon the yard of the Belle Sauvage Inn, where travelers constantly came and went on their journeys, free, if they chose, to roam around the world. In chapter xvii of volume II, Dickens sketches a vivid picture of the daily scene in the jail-yard.

“Sauntering or sitting about, in every possible attitude of listless idleness, were a number of debtors, the major part of whom were waiting in prison until their day of ‘going up’ before the Insolvent Court should arrive, while others had been remanded for various terms, which they were idling away as they best could. Some were shabby, some were smart, many dirty, a few clean; but there they all lounged, and loitered, and slunk about, with as little spirit or purpose as the beasts in the menagerie. Lolling from the windows which commanded a view of this promenade were a number of persons, some in noisy conversation p. 90 with their acquaintances below, and others playing bat all with some adventurous throwers

outside, and others looking on at the racket players, or watching the boys as they cried the game. Dirty, slipshod women passed and repassed on their way to the cooking house in one corner of the yard; children screamed, and fought, and played together in another; the tumbling of the skittles and the shouts of the players mingled perpetually with these and a hundred other sounds, and all was noise and tumult.”

To this picture of the Fleet by day, it is worth while to add one of the after dark, from chapter xii, of volume II.

“It was getting dark; that is to say, a few gas jets were kindled in this place, which was never light, by way of compliment to the evening which had set in outside. As it was rather warm some of the tenants of the numerous little rooms which opened into the gallery on either hand set their doors ajar. Mr. Pickwick peeped into them, as he passed along, with curiosity and interest. Here, four or five great hulking fellows, just visible through a cloud of tobacco smoke, were engaged in noisy and riotous conversation over half-emptied pots of beer, or playing at all fours with a very greasy pack of cards. In the adjourning room some solitary tenant might be seen poring, by the p. 91 light of a feeble tallow candle, over a bundle of soiled and tattered papers, yellow with dust, and dropping with age, writing, for the hundredth time, some lengthened statement of his grievances for the perusal of some great man whose eyes it would never reach, or whose heart it would never touch. In a third a man and his wife and a whole crowd of children might be seen making up a scanty bed on the ground, or upon a few chairs for the younger ones to pass the night in. And in a fourth, and a fifth, and a sixth, and a seventh the noise, and the beer, and the tobacco smoke, and the cards all came over again in greater force than before. In the galleries themselves, and more especially on the staircases, there lingered a great number of people who came there, some because

their rooms were foul and hot, and the greater part because they were restless and uncomfortable and not possessed with the secret of knowing exactly what to do with themselves. There were many classes of people here, from the laboring man and his fustian jacket to the broken-down spendthrift in his shawl dressing-gown, most appropriately out at the elbows; but there was the same air about them all—a sort of listless, gaol-bird, careless swagger; a vagabondish, who's-afraid sort of bearing which is wholly indescribable in words, but which any man can understand in a moment, if he wish, by setting foot in the p. 92 nearest debtors' prison, and looking at the very first group of people he sees there.”

The Fleet Prison was staggering along on its last legs, like some gouty monster whose swollen joints were rotting asunder of internal corruption, when Dickens gave it a place in the fiction of picturesque fact. But it had a long history behind it, a history dating from the time when the Fleet creek, now a noisome sewer under the foundations of the jail, was a pretty little river, winding down from a verdant and fertile country. When the town had grown toward and around it, the Fleet river had become silted and clogged up into a foul and sluggish stream, and was such a nuisance that it was arched over, and a market built upon the arches. But below the market it still remained an open stream, where colliers' barges unloaded their cargoes at Sea-Coal lane, and what is now Bridge street was a sluggish, polluted canal, whose reek infected the air. The gaol took its name from the stream upon whose banks it was built. The exact date of its foundation is unknown, but by various records it was formerly held in conjunction with the Manor of Leveland, in Kent, and with “the King's House at p. 93 Westminster,” the whole being a part of the ancient possessions of the See of Canterbury, traceable in a grant from the Archbishop Lanfranc, soon after the accession of William the Conqueror. The wardenship or sergeantry of the prison was anciently held by several eminent personages, who also had custody of the king's palace at Westminster. It was “a place,” in

the worst sense of the phrase, for, as long ago as 1586, the persons to whom the warden had underlet it were guilty of cruelty and extortion, crimes, however, quite characteristic of the Court of Star Chamber, of which the Fleet was at this time the prison. Up to this period its history is little better than a sealed book, the burning of the prison by the followers of Wat Tyler seeming to have been the only very noticeable event during the above interval. In the reigns of Edward VI and of Mary, the Fleet was tenanted by several victims of religious bigotry. One of the most venerated of British martyrs, Bishop Hopper, was twice committed to the Fleet, which he only quitted in 1555 for the stake and the fire, in the chief town in his diocese, Gloucester. His captivity was truly wretched; he slept upon “a p. 94 little pad of straw” with a rotten covering; “his chamber was vile and stinking,” just as it might have been had he been a poor debtor in 1825.

The fees belonging to the warden of the Fleet and his officers, in the reign of Elizabeth, were very heavy. An archbishop, duke or duchess had to pay for a commitment fee and the first week’s “dyett,” £21 10s.; a lord, spiritual or temporal, £10 5s. 10d.; a knight, £5; an esquire, £3 6s. 8d.; and even a poor man in the wards, “that hath a part at the box, to pay for his fee, having no dyett, 7s. 4d.” The warden’s charge for lawful license “to go abroad” was 20d. per diem. Thus, as may be seen, the fleecing and flayings, the inhumanities and the injustices which characterized the later years of the prison were hereditary to it.

From the reign of Elizabeth to the sixteenth year of King Charles I, 1641, the Star Chamber Court was in full activity, and several bishops and other persons of distinction were imprisoned in the Fleet for their religious opinions. Thither, too, were consigned political victims of the Star Chamber, two of the most interesting cases of this period being those of p. 95 Prynne and Lilburne. Prynne was taken out of the prison, and, after suffering pillory, branding, and mutilation of the nose and ears, was remanded to the Fleet. Lilburne—“Freeborn John”—and his printer were committed to the Fleet for libel and

sedition; and the former was “smartly whipped” at the cart’s tail, from the prison to the pillory place between Westminster Hall and the Star Chamber; and he was subsequently “doubled ironed” in the prison wards. Another tenant of the Fleet at this period was James Howel, the author of the “Familiar Letters,” several of which are dated from the prison. From a letter “To the Earl of B——,” from the Fleet, Nov. 20, 1643, we gather that Howel was arrested “one morning betimes” by five men armed with “swords, pistols and bils,” and some days after committed to the Fleet; and he says, “as far as I see, I must lie at anchor in this Fleet a long time, unless some gentle gale blow thence to make me launch out.” Then we find him consoling himself in the reflection that the English “people” are in effect but prisoners, as all other islanders are. There are other letters by Howel, dated from the Fleet in 1645–1646 and 1647.

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The prison was burnt on September 4, 1666, during the Great Fire, when the prisoners were removed to Carom or Caroon House, in South Lambeth, until the Fleet was rebuilt on the original site. After the abolition of the Star Chamber, in 1641, the Fleet had become a prison for debtors only, and for contempt of the Court of Chancery, Common Pleas and Exchequer. It appears that the prison had been used for the confinement of debtors from the 13th century, at least, a petition from John Trauncy, a debtor in the Fleet, A. D. 1290, being still preserved. When the Star Chamber was abolished, the warden’s power of exacting enormous fees by putting in irons does not appear to have ceased also, for the wardens continued to exercise their tyranny, “not only in extorting exorbitant fees, but in oppressing prisoners for debt, by loading them with irons, worse than if the Star Chamber were still existing.” In 1696 the cruelties and the extortions of the wardens were made public, but it was not until 1727 that the enormity of the system of mismanagement came fully before the public, and indescribable was the excitement and horror it caused. A Parliamentary p. 97 committee was then appointed, and the result of their labors was the committal of Wardens

Bambridge and Huggins, and some of their servants, to Newgate. They were tried for different murders, yet all escaped by the verdict of "Not Guilty." Hogarth has, however, made them immortal in their infamy, in his picture of Bambridge under examination, whilst a prisoner is explaining how he has been tortured. Twenty years after, it is said, Bambridge cut his throat. In consequence of these proceedings the Court of Common Pleas, January 17, 1729, established a new list of fees to be taken, and modified the rules and orders for the government of the Fleet. The rents, perquisites, and profits of the office at the above period were £4,632 18s. 8d. per annum. James Gambier succeeded Bambridge in the wardenship, was succeeded by John Garth, and to him followed John Eyles, and in 1758 Eyles's son succeeded him in the office, which he held for sixty-two years. He was succeeded in 1821 by his deputy, Nixon, who died in 1822. The next appointed was W. R. H. Brown, he being the last of the wardens of the prison.

In the riots of 1780 the Fleet was destroyed p. 98 by fire, and the prisoners liberated by the mob; consequently a great part of the papers and prison records were lost, though there remain scattered books and documents of several centuries back. Although he does not deal specifically with the attack on the prison at this period, Dickens in "Barnaby Rudge" (volume II, chapter ii) gives a brief but picturesque description of the surroundings of the gaol as they were at the time of the Gordon riots.

"Fleet Market at that time was a long, irregular row of wooden sheds and pent houses occupying the centre of what is now called Farringdon street. They were jumbled together in a most unsightly fashion in the middle of the road to the great obstruction of the thoroughfare and the annoyance of passengers who were fain to make their way as best they could among the carts, barrows, baskets, trucks, casks, hulks, and benches, and to jostle with porters, hucksters, wagoners and a motley crowd of buyers, sellers, pickpockets, vagrants and idlers. The air was perfumed with the stench of rotten leaves and faded

fruit, the refuse of the butchers' stalls, and offal and garbage of a hundred kinds. It was indispensable to most public conveniences in those days that they should be public nuisances likewise, and Fleet Market maintained the principle to admiration."

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Further on, in chapter ix of the same work, he summarizes a peculiar episode in the history of the gaol at the same period.

"The gates of the King's Bench and the Fleet Prison, being opened at the usual hour, were found to have notices affixed to them announcing that the rioters would come that night to burn them down. The wardens, too well knowing the likelihood there was of this promise being fulfilled, were fain to set their prisoners at liberty, and gave them leave to move their goods; so all day such of them as had any furniture were occupied in conveying it, some to this place, some to that, and not a few to the brokers' shops, where they gladly sold it for any wretched price those gentry chose to give. There were some broken men among these debtors who had been in gaol so long, and were so miserable and destitute of friends, so dead to the world, and utterly forgotten and uncared for, that they implored their gaolers not to set them free, and to send them, if need were to some other place of custody. But they refusing to comply, lest they should incur the anger of the mob, turned them into the streets where they wandered up and down, hardly remembering the ways untrodden by their feet so long, and crying—such abject things those rotten-hearted gaols had made them—as they slunk off in their rags and dragged their slipshod feet along the pavement."

p. 100

In spite of the concession of the Warden, the mob, as has been stated, burned the Fleet down, and it was in the successor to the den which had risen on the ruins left by the great fire of

1666 that Mr. Pickwick prosecuted his studies of prison life and character.

Among the curiosities of the London Archives are over a ton of books registering the Fleet Marriages between 1686 and 1754, which are in the Registry Office of the Bishop of London, where they were deposited by the Government, which purchased them in 1821. These Fleet Marriages were the scandal and disgrace of their time. While they lasted the debtor's gaol was the Gretna Green of London. There were no end of hard-living parsons flung into the Fleet for debt, and as these men were always paupers in purse, they were put to strange shifts to keep themselves in meat and drink—especially the latter. The idea to convert clandestine marriages into a source of gain, once originated, with men who had neither money, character or liberty to lose, was not long in spreading. At first the ceremony was performed within the prison chapel. Then they became too numerous and the business p. 101 too extensive for the confines of the gaol, and every tavern around the prison had its marriage mill, and a parson who in the rules of the prison was permitted to go at large within certain limits, to grind the mill for anyone who listed. These clerical vagabonds employed touts, who roved about the market and the adjacent streets drumming up custom for the parson, who sat swigging while he waited for trade, very much as the slop-shop salesman of to-day seeks for custom passing on the sidewalk. Tennant relates that in walking the street in his youth, on the side next to this prison: "I have often been tempted by the question, 'Sir, will you be pleased to walk in and be married.'" Along this most lawless space was frequently hung up the sign of a male and female hand conjoined, with "Marriages Performed Within" written beneath. A dirty fellow invited you in. The parson was seen walking before his shop, a squalid, profligate figure, clad in a tattered plaid night-gown, with a fiery face, and ready to couple you for a dram of gin or roll of tobacco. "The Grub Street Journal," in January, 1735, says: "There are a set of drunken, p. 102 swearing parsons, with their myrmidons, who wear black coats and pretend to be

clerks and registers of the Fleet, and who ply about Ludgate Hill, pulling or forcing people to some peddling ale-house or brandy shop to be married; even on a Sunday stopping them as they go to church and almost tearing the clothes off their backs.”

Competition in the business was fierce. While the Fleet parsons sent their pullers-in forth to scour the streets, they hung their signs out in the windows under the shadow of the prison wall. Thus at one corner might be seen a window, “Weddings performed here cheap.” The business was advertised in the newspapers. The marriage taverns lined Fleet Lane and Fleet Ditch. Two of them—the Bull and Garter and the King’s Head—were kept by warders of the prison. The parson and the landlord divided the fee between them, after deducting a shilling for the tout who brought the customers in. If a marriage was desired to be secret it was not entered on the register of the house. Otherwise it was, for a small fee, written down in a book which each tavern kept. Thus a profligate man could victimize p. 103 a confiding girl with impunity. Men and women might commit bigamy at will, since any name they chose to give, along with their fee, satisfied the parson, and they could have the “ceremony” kept unregistered, or dated back as they chose. The law held a married woman free of the responsibility of her debts, while a single woman could be arrested and locked up for them. All a woman of free life had to do to defraud her creditors was to get some man to marry her at the Fleet. Then she could not be prosecuted. As for the man, the creditors had to find him before they could proceed against him.

Women of quality who had led extravagant lives did not hesitate at the same shift. There were parsons who kept husbands in hire at five shillings each. There is record of one fellow having been “married” to four women in one day. There is also a record of women, dressed as men, being hired out as mock husbands for the occasion. All classes were fish for the Fleet parson’s net. Drunken sailors and soldiers were united to the gin-perfumed fairies of the market; roués fetched their silly,

girlish victims in coaches to the altar reeking of stale p. 104 beer and brandy; and great men of the realm utilized the functions of the clerical mountebanks to a similar result. In five months—from October, 1704, to February, 1705—2,954 marriages were recorded at the Fleet. How many went unrecorded can only be surmised. The church strove in vain to eradicate the scandal, and it required an Act of Parliament to put an end to it in 1754.

The Fleet marriages provided Dickens with no material, although other and less distinguished romancers have found use for them, with more or less effect. In fact, Dickens rarely wrote without a distinct object, and in “Pickwick,” desultory and irregular as the thread of the narrative is, he had such a purpose when he took the Fleet in hand. At the time he wrote of it (1836) the monstrosity was at its worst. The prevalent system of imprisonment for debt rendered the hideous gaol a tool at the hands of a vengeful enemy, and in those of a rapacious and dishonest man. The outrages to which it lent itself, at the call of swindling lawyers and commercial extortioners, had commenced to attract public attention. That the chapters on the Fleet in “Pickwick” bore a share in arousing p. 105 the general indignation which forced the Government into action cannot be questioned. They shaped the popular sentiment and gave it a war-cry. But the good work was not to be done in a day. It required an Act of Parliament, debated on and contested with the usual ponderous procrastinateness, to rid the earth of the Fleet. The Act was at last passed in 1842, and by it the prison was abolished, and its inmates were drafted into the Queen’s Prison. The Fleet was later sold to the Corporation of the City of London, and in the spring of 1846 it was razed to the ground. Its site to-day is marked by business buildings, whose ceaseless industry makes a strange monument for the stagnant and idle life of which the spot was once the scene.

CHAPTER IV.

THE MARSHALSEA.

IT was a good seven years—or an evil seven—for many a poor debtor, after the Fleet was legislated out of existence, before its younger brother on the other side of the river followed it. The Marshalsea was not officially abolished until 1849, and even then it escaped the doom of extinction meted out to the Fleet, and prolonged its material existence into our own day. What had been a frowsy jail became a frowsy shelter for a community scarcely poorer than that which had once inhabited it; albeit this newer community enjoyed the advantage of being miserable in freedom from the restraint of barred windows and spike-topped walls.

Of the prison, Dickens sketches a good description in Chapter 6 of the first volume of “Little Dorrit.” “Thirty years ago,” he says, “there stood, a few doors short of the church of St. George, in the borough of Southwark, on the left-hand side of the way going southward, p. 107 the Marshalsea Prison. It was an oblong pile of barrack buildings, partitioned into squalid rooms standing back to back, so that there were no back rooms; environed by a narrow paved yard, hemmed by high walls duly spiked on the top. Itself a close and confined prison for debtors, it contained within it a much closer and more confined gaol for smugglers. Offenders against the revenue laws, and defaulters to the excise or customs, who had incurred fines which they were unable to pay, were supposed to be incarcerated behind an iron-plated door, closing up a second prison, consisting of a strong cell or two, and a blind alley some yard and a half wide, which formed the mysterious termination of the very limited skittle ground in which the Marshalsea debtors bowled down their troubles. Supposed to be incarcerated there, because the time had rather outgrown the strong cells and the blind alley. In

practice they come to be considered a little too bad, though in theory they were quite as good as ever; which may be observed to be the case at the present day with other cells that are not at all strong, and with other blind alleys that are p. 108 stone blind. Hence the smugglers habitually consorted with the debtors (who received them with open arms) except at certain constitutional moments when somebody came from some office, to go through the form of overlooking something, which neither he nor anybody else knew anything about. On these truly British occasions, the smugglers, if any, made a feint of walking into the strong cells and the blind alley, while this somebody pretended to do his something, and made a reality of walking out again as soon as he hadn't done it—nearly epitomising the administration of the most of the public affairs in our own right, tight little island.”

The Marshalsea had several notable neighbors in its own line of trade. One of these was Horsemonger Lane Gaol, the county jail for Surrey. It was a sturdy, thick-set prison, with a massive-looking lodge and powerful walls. Executions took place on the roof of the lodge, the gallows being set up there, and the drop cut in the roof itself. These hangings were a popular show in their day, and the tenants of the houses across the way from the jail used to reap a harvest by letting p. 109 their front windows to sightseers. It is said that they would commonly make a year's rent, and often more, out of the morbid curiosity of the town on one of these occasions. What the occasions were like, Dickens has left us an idea in his famous letter to the “Times,” on the occasion of the execution of the Mannings, husband and wife, on November 13, 1849. Dickens and John Foster attended this ghastly raree-show. Here is a description of it:

“I was a witness to the execution of the Mannings in Horsemonger Lane. I went there with the intention of observing the crowd gathered to behold it, and I had excellent opportunities of doing so; at intervals all through the night, and continuously from daybreak until the spectacle was over. I believe that a sight so inconceivably awful as the wickedness and levity of the

immense crowd collected at that execution could be imagined by no man, and could be presented in no heathen land under the sun. The horrors of the gibbet and of the crime which brought these wretched murderers to it, faded in my mind before the atrocious bearing, looks and language of the assembled spectators. When I came upon the scene, at midnight, the shrillness of the cries and howls that were raised from time to time, denoting that they came from a concourse of p. 110 boys and girls already assembled in the best places, made my blood run cold. As the night went on, screeching and laughing and yelling, in strong chorus of parodies on negro melodies, with substitutions of 'Mrs. Manning' for 'Susannah,' and the like, were added to these. When the day dawned, thieves, low prostitutes, ruffians and vagabonds of every kind flocked on to the ground, with every variety of offensive and foul behaviour. Fightings, faintings, whistlings, imitations of Punch, brutal jokes, tumultuous demonstrations of indecent delight when swooning women were dragged out of the crowd by the police with their dresses disordered, gave a new zest to the general entertainment. When the sun rose brightly, as it did, it gilded the thousands upon thousands of upturned faces, so inexpressibly odious in their brutal mirth or callousness, that a man had cause to feel ashamed of the shape he wore, and to shrink from himself, as fashioned in the image of the devil. When the two miserable creatures who attracted all this ghastly sight about them were turned quivering into the air, there was no more emotion, no more pity, no more thought that two immortal souls had gone to judgment, no more restraint in any of the previous obscenities than if the name of Christ had never been heard in the world, and there was no belief among men but that they perished p. 111 like beasts. I have seen, habitually, some of the sources of general contamination and corruption, and I think there are not many phases of London life that could surprise me. I am solemnly

convinced that nothing that ingenuity could devise to be done in this city, in the same compass of time, could work such ruin as one public execution, and I stand astounded and appalled by the wickedness it exhibits. I do not believe that any community can prosper where such a scene of horror and demoralization as was enacted this morning outside Horsemonger Lane Gaol is presented at the very doors of the good citizens, and is passed by unknown or forgotten.”

This letter created a tremendous sensation, and started a whole flood of literature, condemnatory and demanding the abolishment of public hangings; but they were not finally done away with until nearly twenty years later. Apropos of Horsemonger Lane, readers of “Little Dorrit” may recall that it was here that John Chivery resided, assisting his mother “in the conduct of a snug tobacco business, which could usually command a neat connection within the college walls”—the college being a polite title for the Marshalsea, whose inmates were, by natural association, p. 112 technically known among themselves as collegians.

“The tobacco business around the corner of Horsemonger Lane was carried on in a rural establishment one story high, which had the benefit of the air from the yards of the Horsemonger Lane Gaol, and the advantage of a retired walk under the wall of that pleasant establishment. The business was of too modest a character to support a life-sized Highlander, but it maintained a little one on the bracket on the door post, who looked like a fallen cherub that had found it necessary to take to a kilt.”

It was from the stock of this establishment that John Chivery produced the cigars of which he made a Sunday offering on the altar of the Father of the Marshalsea, who not only “took the cigars and was glad to get them,” but “sometimes even condescended to walk up and down the yard with the donor, and benignantly smoke one in his society.” It was also from

this establishment that he issued forth on the memorable Sunday, “neatly attired in a plum-colored coat, with as large a collar of black velvet as his figure could carry; a silken waistcoat, bedecked with golden sprigs, a chaste neckerchief much in vogue in p. 113 that day, representing a preserve of lilac pheasants on a buff ground; pantaloons, so highly decorated with side stripes that each leg was a three-stringed lute; and a hat of state, very high and hard,” not to mention a pair of white kid gloves, and a cane like a little finger post, surmounted by an ivory hand, to propose to Little Dorrit on the Iron Bridge.

Another of the famous Southwark gaols was the King’s Bench, but in justice to Mr. Micawber, it demands a chapter to itself. To return to the Marshalsea, it may be remarked that Dickens knew it by such early experience that he was qualified to write about it, even more exhaustively than he did in “Little Dorrit.” While he was still a boy, in 1822, his father endured a period of compulsory retirement behind its lock, and the future chronicler of the jail lodged in a cheap garret near by, an episode of his life which he has introduced in “David Copperfield,” in connection with the Micawbers and the King’s Bench. Every morning, as soon as the gates were opened, the boy went to the Marshalsea, where his mother had joined his father, to breakfast. In the evening he would go to the jail from p. 114 the blacking factory, where he was employed, to get his supper. The family got along quite gayly while the elder Dickens’s affairs were in the courts. He had an income on which they lived and kept a servant, a workhouse girl, from whom the novelist is said to have drawn his character of The Marchioness in “Old Curiosity Shop.” The girl and the boy had to leave the prison before ten, when the gate was locked for the night, and they became great friends. On holidays he would go to the seminary on Tenterden street, where his sister Fanny was at school, and fetch her to spend the day in the family circle, escorting her back in the evening. How freely he used his Marshalsea experiences in “David Copperfield,” and transferred to Mr. Micawber the actualities of his own family life, may be appreciated from the passage, written by himself

and quoted by Foster, relating to his first visit to his father in the jail:

“My father was waiting for me in the lodge, and we went up to his room (on the top story but one) and cried very much, and he told me, I remember, to take warning by the Marshalsea, and to observe that if any man had twenty pounds a year, and spent nineteen pounds nineteen p. 115 shillings and sixpence, he would be happy; but that a shilling spent the other way would make him wretched. I see the fire we sat before now, with two bricks in the rusted grate, one on each side to prevent its burning too many coals. Some other debtor shared the room with him, who came in by-and-by; and, as the dinner was a joint-stock repast, I was sent up to Captain Porter in the room overhead, with Mr. Dickens’s compliments, and I was his son, and could he, Captain P., lend me a knife and fork. Captain P. lent me a knife and fork, with his compliments in return. There was a very dirty lady in his room, and two wan girls, his daughters, with shock heads of hair. I thought I should not have liked to borrow Captain Porter’s comb. The Captain himself was in the last extremities of shabbiness, and if I could draw at all, I would draw an accurate portrait of the old, old brown great-coat he wore, with no other coat below it. His whiskers were large. I saw his bed rolled up in a corner, and what plates and dishes and pots he had on a shelf; and I knew (God knows how) that the two girls with the shock heads were Captain Porter’s natural children, and that the dirty lady was not married to Captain P. My timid, wondering station on his threshold was not occupied more than a couple of minutes, I daresay; but I came down into the room p. 116 below with all this as surely in my knowledge as the knife and fork were in my hand.”

It was into this familiar scene that Dickens introduced Mr. William Dorrit, a very amiable and very helpless middle-aged gentleman, who was “going out again directly. Necessarily he

was going out again directly, because the Marshalsea lock never turned upon a debtor who was not. He brought in a portmanteau with him, which he doubted it worth while to unpack, he was so perfectly clear—like all the rest of them, the turnkey on the lock said—that he was going out again directly. He was a shy, retiring man, well-looking, though in an effeminate style; with a mild voice, curling hair, and irresolute hands—rings upon the fingers those days, not one of which was left” upon them a little while after—when the drunken doctor, fetched in haste, ushered Little Dorrit into the world, with the assistance of Mrs. Bangham and the brandy bottle. The doctor was a type of one class of tenants to be found in every debtors’ prison. He lived in a wretched, ill-smelling room under the roof, with a puffy, red-faced chum, who helped to pass the time playing all fours, with pipe and p. 117 brandy trimmings. “The doctor’s friend was in the positive stage of hoarseness, puffiness, all fours, tobacco, dirt and brandy; the doctor in the comparative—hoarser, puffier, more red-faced, more all foury, tobaccoer, dirtier and brandier. The doctor was amazingly shabby in a torn, darned, rough weather sea jacket, out at the elbows, and eminently short of buttons (he had been in his time the experienced surgeon carried by a passenger ship), the dirtiest white trowsers conceivable by mortal man, carpet slippers and no visible linen. ‘Childbed?’ said the doctor (to Mr. Dorrit, who had come to summon him) ‘I’m the boy!’ With that the doctor took a comb from the chimneypiece, and stuck his hair upright—which appeared to be his way of washing himself—produced a professional case or chest, of the most abject appearance, from the cupboard where his cup and saucer and coals were, settled his chin in a frowsy wrapper round his neck, and became a ghastly medical scarecrow.”

To enter the public establishment of which he was destined to become the patriarch, Mr. William Dorrit had passed through an open outer gate on High street in the Borough, to p. 118 give Southwark its more familiar name; had crossed a little courtyard, ascended a couple of stone steps, traversed a narrow entry, and been admitted by a string of locked doors into the

prison lodge. Here he had waited, as the form and practice of the proceeding required, until his arrival was registered, and the tipstaff, who had kindly guided and guarded his feet to this harbor of refuge from the cares of the world which works for a living, had received a receipt for his safe delivery. Through another door at the rear of the lodge, which was built in the wall of the jail itself, he was conducted to what was to be his home for half the lifetime allotted to mortal man. Before him was the jail court, the aristocratic court, where the pump was; and facing the lofty wall which divided it from the street, the barrack, on the next to the top floor of which he found the shabby room in which the child of the Marshalsea was to be born. Debtors were playing at racket and skittles in the court, and grouped around the entrance to the snuggerly or tap-room at the further end of the barrack. There were "the collegian in the dressing gown, who had no coat, the stout greengrocer collegian in the corduroy p. 119 kneebreeches, who had no cares, the collegian in the seaside slippers, who had no shoes, and the lean clerk collegian in buttonless black, who had no hopes; the man with many children and many burdens, whose failure astonished everybody; the man of no children and large resources, whose failure astonished nobody; the people who were always going out to-morrow, and always putting it off; the slatternly women at the windows, gossiping shrilly, the smudgy children playing noisily; all those people in fine who belong to such a place, not forgetting the nondescript messengers, go-betweens and errand runners, who formed a class by themselves."

Every debtors' prison had its corps of such attendants, who came and went in the service of the inmates whose liberty ended at the lodge door. "The shabbiness of these attendants upon shabbiness, the poverty of the insolvent waiters on insolvency, was a sight to see. Such threadbare coats and trowsers, such fusty gowns and shawls, such squashed hats and bonnets, such boots and shoes, such umbrellas and walking sticks, never were seen in Rag Fair. All of them wore the cast-off clothes of other p. 120 men and women; were made up of

patches and pieces of other peoples' individuality, and had no sartorial existence of their own proper. Their walk was the walk of a race apart. They had a peculiar way of doggedly slinking around the corner, as if they were eternally going to the pawnbroker's. When they coughed, they coughed like people accustomed to be forgotten on the doorsteps and draughty passages, waiting for answers to letters in faded ink, which gave the recipients of those manuscripts great mental disturbance and no satisfaction. As they eyed the stranger in passing, they eyed him with borrowing eyes—hungry, sharp, speculative as to his softness if they were accredited to him, and the likelihood of his standing something handsome. Mendicity on commission stooped in their high shoulders, shambled in their unsteady legs, buttoned and pinned and darned and dragged their clothes, frayed their button-holes, leaked out of their figures in dirty ends of tape, and issued from their mouths in alcoholic breathings.”

In spite of occasional touches such as this, the comparative brightness of Dickens's picture of the Marshalsea, as contrasted with the p. 121 gloom and horror of his delineation of the Fleet, has been frequently commented upon, but there was a reason for this in fact. Squalid and miserable enough the Marshalsea was, but it was still more merciful and humane a house of confinement than the other. Extortions were common to all such places, but they were carried to their worst extent at the Fleet. The Marshalsea, moreover, was a smaller prison, its population came and went at shorter intervals than that of the Fleet, and it did not include so heavy a percentage of the baser elements of society as festered in the social cesspool opposite the Fleet Market. Very few debtors remained in the gaol for an extended period. The average generation of a Marshalsea prisoner was, as Dickens himself says, three months. The case of the Father of Marshalsea—which, by the way, was based on that of a real prisoner in the last century—was unique. “The affairs of this debtor were perplexed by a partnership of which he knew no more than that he had invested money in it, by legal matters of assignment and settlement, conveyance here

and conveyance there, suspicion of unlawful preference of creditors in this direction, and of mysterious p. 122 spiriting away of property in that.” In short, Mr. William Dorrit’s affairs were so tangled up that even the lawyers could not untwist them, and finally they gave him up, and in the inextricable entanglement he remained fettered to the Marshalsea as if he had never been a part of any world beyond its confining wall. “Crushed at first by his imprisonment” (vide Chapter 6, Volume I, “Little Dorrit”), “he had soon found a dull relief in it. He was under lock and key; but the lock and key that kept him in kept numbers of his troubles out. If he had been a man with strength of purpose to face these troubles and fight them, he might have broken the net that held him, or broken his heart; but, being what he was, he languidly slipped into this smooth descent and never took one step upward. He had unpacked the portmanteau long ago; and his elder children played regularly about the yard, and everyone knew the baby and claimed a kind of proprietorship in her.” The title conferred upon him by a turnkey he came to hear with pride, and under it he levied the tribute of selfish and ungrateful beggary upon the goodnatured subjects over whom he presumed to rule.

p. 123

There was a certain snugness about the Marshalsea which was not to be found in the Fleet. There the company was too numerous and heterogeneous to form any social combination. In the smaller prison a specie of club system was kept up. The tap-room, or snuggery, was a public room where meat and drink might be procured, and where a fire was maintained for the use of the prisoners who did not wish to cook in their rooms. The furnace was kept fed by assessment of those who used it. At the club, which met nightly, each man paid his own scot. The requisite for membership was the possession of the price of the potations served to the member. The club was of indefinite proportions and individuality. Its members came with the tipstaves and went with the orders of release issued by the courts. The general form of its management was that which used to be known as the “free and easy.” If any person present

was a mimic, a singer, a musician, or otherwise gifted with a pleasing or popular accomplishment, he might be called upon to display it for the general good. Poor debtors, who could do something to amuse, might have their beer free at the charge of the more solvent p. 124 collegians whom they consented to divert. There is a legend of a comedian, broken down by drink, who was sent to the Marshalsea and who lived off the fat of the jail for several years, until he died of it, all through the discreet application of his mimetic and comic powers in the snuggerie club. Once in a while the club would perform a piece of serious business. Sometimes it would draft a memorial against imprisonment for debt to the Throne or Judges, which neither Throne nor Judges saw or read, of course. Sometimes it would issue patriotic manifestoes to Parliament, of which Parliament remained equally ignorant. When a popular member secured his release the club would present him with a memorial, properly engrossed and framed, of its esteem. Mr. Dorrit received such a memorial when he came into his fortune and resigned his paternal supremacy over the college; and in return he treated the whole jail to a refectory in the Pump Yard, as you may read in the last chapter of the first volume of the record of his prison patriarchy. But one drop of bitterness flavored the cup of the Marshalsea Club. Its festivities were limited by the public hours of the prison. p. 125 The clangor of the jail bell announced the closing of the gates at ten o'clock at night, and warned all visitors to retire or be locked in until morning. Such experience befell Mr. Arthur Clennam when he made his first visit to the Dorrits' at home.

“The stoppage of the bell, and the quiet in the prison, were a warning to depart. But he had remained too late. The inner gate was locked and the lodge closed. This brought them to the tavern establishment at the upper end of the prison, where the collegians had just vacated their social evening club. The apartment on the ground floor in which it was held was the Snuggery: the presidential tribune of the chairman, the pewter pots, glasses, pipes, tobacco ashes and general flavor of members were still as

that convivial institution had left them on its adjournment. The Snuggery had two of the qualities popularly held to be essential for grog for ladies, in respect that it was hot and strong; but in the third point of analogy, requiring plenty of it, the Snuggery was defective; being but a cooped-up apartment.

“The unaccustomed visitor from the outside naturally assumed everybody to be prisoners—landlord, waiter, barmaid, potboy and all. Whether they were or not did not appear; but they all had a weedy look. The keeper of the chandler’s shop in the front parlor, who took in p. 126 gentlemen boarders, lent his assistance in making the bed. He had been a tailor in his time, and had kept a phaeton, he said. It was evident, from the general tone of the whole party, that they had come to regard insolvency as the normal state of mankind, and the payment of debts a disease that occasionally broke out. In this strange scene, and with these strange spectres flitting about him, Arthur Clennam looked on the preparations as if they were a part of a dream. Pending the while the long initiated Tip, with an awful enjoyment of the Snuggery’s resources, pointed out the common kitchen fire maintained by subscription of the collegians, the boiler for hot water, supported in the same manner, and other premises generally tending to the deduction that the way to be healthy, wealthy and wise was to come to the Marshalsea.

“The two tables put together in a corner were, at length, converted into a very fair bed; and the stranger was left to the Windsor chairs, the presidential tribune, the beery atmosphere, sawdust, pipelights, spittoons and repose. But the last item was long, long, long in linking itself to the rest. The novelty of the place, the coming upon it without preparation, the sense of being locked up, kept him waking and unhappy. Speculations, too, bearing on the strangest relations towards the prison, but always concerning the prison, ran like nightmares p. 127 through his mind while he lay awake. Whether coffins were kept

ready for people who might die there, where they were kept, how they were kept, where people who died in prison were buried, how they were taken out, what forms were observed, whether an implacable creditor could arrest the dead? As to escaping, what chances were there of escape? Whether a prisoner could scale the walls with a cord and grapple? How he would descend on the other side; whether he could alight on a housetop, steal down a staircase, let himself out at a door, and get lost in the crowd? As to fire in the prison, if one were to break out while he lay there?

“The morning light was in no hurry to climb the prison wall and look in at the Snuggery windows; and when it did come, it would have been more welcome if it had come alone, instead of bringing a rush of rain with it. But the equinoctial gales were blowing out at sea, and the impartial southwest wind, in its flight, would not neglect even the narrow Marshalsea. While it roared through the steeple of St. George’s church, and twirled all the cowls in the neighborhood, it made a swoop to beat the Southwark smoke into the gaol; and, plunging down the chimneys of the few collegians who were yet lighting their fires, half suffocated them.

“Heartily glad to see the morning through little p. 128 rested by the night, he turned out as soon as he could distinguish objects about him, and paced the yard for two heavy hours before the gaol was opened. The walls were so near to one another, and the wild clouds hurried over them so fast, that it gave him a sensation like the beginning of seasickness to look up at the gusty sky. The rain, carried aslant by flaws of wind, blackened that side of the central building which he had visited last night, but left a narrow dry trough under the lee of the wall, where he walked up and down among the waifs of straw and dust and paper, the waste droppings of the pumps and the stray leaves of yesterday’s greens. It was as haggard a view of life as a man need look upon.”

By the arrangement of the walls, all that the prisoners in the Marshalsea could see out of doors was the sky. The view from the barred windows of the uppermost rooms was cut off by the higher line of the wall topped with its chevaux-de-frise. But Little Dorrit's own room, being in the Warden's house, had a somewhat freer prospect. "A garret and a Marshalsea garret without compromise was Little Dorrit's room," but "the housetops and the distant country hills were discernible over the walls in the clear morning." Since the prison has p. 129 been put to ordinary uses, such of the wall as is left has been lowered so that the view except from the lower windows is not obstructed. The sharp and cruel spikes that reddened in the sunrise like the bloody fangs of a savage beast, are gone. Poverty looks out of the old windows without having to peep between iron bars, and in the prison where the smugglers did not abide a factory is busy. The place, when I saw it, had changed but little since Dickens himself visited it in 1857, and wrote:

"I found the outer front court-yard, often mentioned here, metamorphosed into a butter shop; and I then almost gave up every brick of the gaol for lost. Wandering, however, down a certain adjacent 'Angel Court, leading to Bermondsey,' I came to 'Marshalsea Place,' the houses in which I recognized; not only the great block of the former prison, but as preserving the rooms that arose in my mind's eye when I became Little Dorrit's biographer. A little further on, I found the older and smaller wall, which used to inclose the pent-up inner prison, where nobody was put except for ceremony. But whosoever goes into Marshalsea Place, turned out of Angel Court, leading to Bermondsey, will find his feet on the very paving stones of the extinct Marshalsea Gaol; will see its narrow yard to the right and to the p. 130 left, very little altered, if at all, except that the walls were lowered when the place got free; will look upon the rooms in which the debtors lived; and will stand among the crowding ghosts of many years."

The Marshalsea has a history nearly as ancient as the Fleet. Stow tells us that it was so called as “pertaining to the Marshalls of England.” In it were confined all manners of marauders, with a special tendency towards persons who had been guilty of piracy and other offenses on the high seas. Some authorities place its foundation as far back as the Twelfth Century. It was a prison of considerable extent in 1377, when a mob of sailors broke into it and murdered a gentleman who had been incarcerated there for killing one of their comrades in a pot-house brawl. Three years later, Wat Tyler, in the course of his rebellion, seized and hanged the Marshal of the Marshalsea. The official title of the Warden of the prison was, by the way, Marshal. When Bishop Bonner was deprived of his see of London for his adherence to the Church of Rome, he was sent to the Marshalsea. He lived there ten years, and there dying, in 1569, he was buried at midnight in St. George’s Church hard p. 131 by. This ancient prison occupied another site on the same street as the later structure. Under Henry VIII, Mary, and Elizabeth, it was the second prison in importance in London, being inferior only to the Tower. Here Christopher Brooke, the poet, was confined for being concerned in the wedding of Dr. Donne, and here George Wither was a prisoner for one of his satires against the Government aggressions and the abuse of the royal prerogative. The Nonconformist confessors were divided up among the Southwark prisons, and the Marshalsea received its share of them. John Udall, the Puritan martyr, fell a victim to its gaol fever. Its blight extended through many generations, and the shadow of its walls darkened many useful lives for no crime worse than the accident of failure that may come to any man. A false system ground its abject shabbiness, its haggard anxiety, and hopeless stupor of energies, into natures that might, but for it, have triumphed over care, and converted the defeat of to-day into the victory of to-morrow. “Changeless and barren, looking ignorantly at all seasons with its fixed, pinched face of poverty and care, the prison p. 132 had not a touch of any of these beauties in it. Blossom what would, its bricks and bars bore uniformly the same dead crop.”

Long before “Little Dorrit” was projected, Dickens introduced the Marshalsea to his readers; even before he introduced the Fleet, indeed. The ceremony was performed in Volume I chapter 21 of the “Pickwick Papers,” in the sketch called “The Old Man’s Tale about the Queer Client.” Here is the passage:

“In the Borough High street, near St. George’s Church, and on the same side of the way, stands, as most people know, the smallest of our debtors’ prisons—the Marshalsea. Although in later times it has been a very different place from the sink of filth and dirt it once was, even its improved condition holds out but little temptation to the extravagant or consolation to the improvident. The condemned felon has as good a yard for air and exercise in Newgate as the insolvent debtor in the Marshalsea Prison.

“It may be my fancy, or it may be that I cannot separate the place from the old recollections associated with it, but this part of London I cannot bear. The street is broad, the shops are spacious, the noise of the passing vehicles, the footsteps of a perpetual stream of people—all the busy sounds of traffic resound p. 133 in it from morn to midnight, but the streets around are mean and close; poverty and debauchery lie festering in the crowded alleys; want and misfortune are penned up in the narrow prison; an air of gloom and dreariness seems, in my eyes at least, to hang about the scene, and to impart to it a squalid and sickly hue.

“Many eyes that have long since closed in the grave, have looked around upon that scene lightly enough, when entering the gate of the old Marshalsea Prison for the first time; for despair seldom comes with the first severe shock of misfortune. A man has confidence in untried friends, he remembers the many offers of assistance so freely made by his boon companions when he wanted them not, he has hope—the hope of happy inexperience—and however he may bend beneath the first shock, it springs up in his

bosom, and flourishes there for a brief space, until it droops beneath the blight of disappointment and neglect. How soon have those same eyes, deeply sunken in the head, glared from faces wasted with famine, and sallow from confinement, in days when it was no figure of speech to say that the debtors rotted in prison, with no hope of release, and no prospect of liberty. The atrocity in its full extent no longer exists, but there is enough of it left to give rise to occurrences that make the heart bleed.”

CHAPTER V.

THE KING'S BENCH.

IN the "Pickwick Papers" the Fleet Prison was made to serve as an important feature of the story. In "Little Dorrit," the story as far as its human interest, humor and pathos are concerned, centres in the Marshalsea. The introduction of the King's Bench into "David Copperfield" is entirely episodic, but it makes one of the most brilliant chapters in the book, and, from its personal connection with the author's own life, one of the most important. That Dickens drew largely on his own experience for the material in "David Copperfield" has been abundantly shown by many commentators. Without being an autobiography, the book gives one many glimpses into the real life of its author. He transfers scenes and changes names a trifle, as he was fond of doing, but the private memoranda furnished by him of his early toil and trials afford a key to much that one reads in "Copperfield" in the flimsy p. 135 disguise of fiction. Thus, he adapts the knowledge of the Marshalsea, which he acquired while his father was a prisoner there, to the fictitious figure and fortunes of old Dorrit; and he bestows on Mr. Micawber, in the King's Bench, the traits displayed by his father in the Marshalsea. A recent compiler of odds and ends of Dickens personalia, sapiently undertakes to show that the elder Dickens must have been incarcerated in the King's Bench and not in the Marshalsea, because Mr. Micawber was locked up there. Unfortunately for this arrangement, Dickens himself had distinctly disproved it in advance. Some years before he wrote "Copperfield"—probably before he even thought of writing it—he jotted down a number of personal facts, many of which were used in Forster's biography. These notes demonstrate positively that in it, as in "Dorrit," he pursued his favorite plan of interchanging

occurrences, scenes and characters, without, however, departing from the main facts, which he had grafted in this fashion on the inventions of his fantasy. At the very commencement of the King's Bench interlude in "David Copperfield" this becomes apparent.

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"At last Mr. Micawber's difficulties came to a crisis, and he was arrested one morning and carried over to the King's Bench Prison in the Borough. He told me, as he went out of the house, that the God of day had now gone down upon him—and I really thought his heart was broken, and mine too. But I heard, afterwards, that he was seen to play a lively game of skittles before noon.

"On the first Sunday after he was taken there I was to go and see him and have dinner with him. I was to ask my way to such a place, and just short of that place I should see such another place, and just short of that I should see a yard, which I was to cross, and keep straight on until I saw a turnkey. All this I did, and when at last I did see a turnkey (poor little fellow that I was), and thought how, when Roderick Random was in a debtor's prison, there was a man there with nothing on but an old rug, the turnkey swam before my dimmed eyes and my beating heart.

"Mr. Micawber was waiting for me within the gate, and we went up to his room (top story but one) and cried very much. He solemnly conjured me, I remember, to take warning by his fate; and to observe that if a man had twenty pounds a year for his income, and spent nineteen pounds, nineteen shillings and sixpence, he would be happy, but that if he spent twenty pounds one he would be miserable. p. 137 After which he borrowed a shilling from me for porter, gave me a written order on Mrs. Micawber for the amount and put away his pocket handkerchief and cheered up.

"We sat before a little fire, with two bricks put within the rusted grate, one on each side, to prevent its burning

too many coals until another debtor, who shared the room with Mr. Micawber, came in from the bakehouse with a loin of mutton, which was our joint stock repast. Then I was sent up to ‘Captain Hopkins,’ in the room overhead, with Mr. Micawber’s compliments, and I was his young friend, and would Captain Hopkins lend me a knife and fork.

“Captain Hopkins lent me a knife and fork with his compliments to Mr. Micawber. There was a very dirty little lady in his little room, and two wan girls, his daughters, with shock heads of hair. I thought it was better to borrow Captain Hopkins’s knife and fork than Captain Hopkins’s comb. The Captain himself was in the last extremity of shabbiness, with large whiskers, and an old, old brown great coat, with no other coat below it. I saw his bed rolled up in a corner; and what plates and dishes and pots he had, on a shelf; and I divined (God only knows how) that though the two girls with the shock heads of hair were Captain Hopkins’s children, the dirty little lady was not married to Captain Hopkins. My p. 138 timid station on the threshold was not occupied more than a couple of minutes at most; but I came down again with all this in my knowledge as surely as the knife and fork were in my hand.”

Compare this with Dickens’s description of his actual visit to his father in the Marshalsea. The difference is only that of a slight rounding off or modifying of a sentence in the “Copperfield” version. In the case of Captain Hopkins, whose real name was Captain Porter, one may note how the actual suggested the fictitious title. The association between porter and hops is evident and direct. The real experiences of the Dickens’s, at this period, in and out of jail, parallel those credited to the Micawbers. Mrs. Dickens and the family camped in Gower street just as Mrs. Micawber and the children camped in Windsor Terrace. The Dickenses even had a workhouse girl for servant, like the Micawbers, and little Charles made journeys to the pawnshop and the old book-stall

in real life, just as David did in the story. Throughout this portion of biography and book the entries go side by side. For example:

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CHARLES DICKENS.

“At last my mother and her encampment in Gower street north, broke up and went to live in the Marshalsea. The key of the house was sent back to the landlord, who was very glad to get it; and I (small Cain that I was, except that I had never done harm to anyone) was handed over as a lodger to a reduced old lady, long known to our family, in Little College street, Camden town. I felt keenly living so cut off from my parents, my brothers and sisters. One Sunday night I remonstrated with my father on this head, so pathetically and with so many tears, that his kind nature gave away. A back attic was found for me at the house of an insolvent p. 140 court-agent, who lived in Lant street, in the Borough, where Bob Sawyer lodged many years afterwards. A bed and bedding were sent over for me and made up on the floor. The little window had a pleasant prospect of a timber yard; and

DAVID COPPERFIELD.

“At last Mrs. Micawber resolved to move into the prison, where Mr. Micawber had now secured a room to himself. So I took the key of the house to the landlord, who was very glad to get it; and the beds were sent over to the King’s Bench, except mine, for which a little room was hired outside the walls in the neighborhood of that institution, very much to my satisfaction, since the Micawbers and I had become too used to one another in our troubles to part. The Orfling was likewise accommodated with an inexpensive lodging in the same neighborhood. Mine was a quiet back garret, with a sloping roof, commanding a pleasant prospect of a timber yard; and when I took possession of it, with the reflection that Mr. Micawber’s troubles had come to a crisis at last, I thought it quite a paradise.”

when I took possession of my new abode I thought it was a paradise.”

As Dickens told Forster, his family had no want of bodily comforts in the Marshalsea. His father’s income, still going on, was amply sufficient for that; and in every respect, indeed, but elbow room, they lived more comfortably in prison than they had done for a long time while out of it. As he told the public in “David Copperfield”: “I was now relieved of much of the weight of Mr. and Mrs. Micawber’s cares; for some relatives or friends had engaged to help them at their present pass, and they lived more comfortably in the prison than they had p. 141 lived for a long time out of it.” As Forster tells us, directly from Dickens’s own statements to him: “They were waited on still by the maid-of-all-work from Bayham street, the orphan girl of the Chatham workhouse, from whose sharp little worldly and also kindly ways he took his first impression of the Marchioness in the ‘Old Curiosity Shop.’ She also had a lodging in the neighborhood that she might be early on the scene of her duties; and when Charles met her, as he would do occasionally, in his lounging place by London bridge, he would occupy the time before the gates opened by telling her quite astonishing fictions about the wharves and the Tower.” As David Copperfield tells us:

“I used to breakfast with them, now, in virtue of some arrangement, of which I have forgotten the details. I forget, too, at what hour the gates were opened in the morning, admitting of my going in, but I know that I was often up at six o’clock, and that my favorite lounging place in the interval was the old London Bridge, where I was wont to sit in one of the stone recesses, watching the people go by, or to look over the balustrades at the sun shining in the water, and lighting up the golden flame on the top of the Monument. The p. 142 Orfling met me here sometimes, to be told some astonishing fictions respecting the wharves and the Tower; of which, I can say no more

than I hope I believed them myself. In the evening I used to go back to the prison, and walk up and down the parade with Mr. Micawber; or play casino with Mrs. Micawber and hear reminiscences of her mamma and her papa.”

Charles Dickens’s father’s “attempts to avoid going through the courts having failed, all needful ceremonies had to be undertaken to obtain the benefit of the Insolvent Debtors’ Act.” Mrs. Micawber informed David that “her family had decided that Mr. Micawber should apply for his release under the Insolvent Debtors’ Act, which would set him free, she expected, in about six weeks.” The elder Dickens, while awaiting his discharge from the Marshalsea, had drawn up a petition to the throne for the appropriation of a sum of money to enable the prisoners to drink His Majesty’s health on His Majesty’s forthcoming birthday. “I mention the circumstance,” writes Dickens in his autobiographical jottings, “because it illustrates to me my early interest in observing people. When I went to the Marshalsea of a night, I was always delighted to p. 143 hear from my mother what she knew about the histories of the different debtors in the prison; and when I heard of this approaching ceremony, I was so anxious to see them all come in, one after another (though I knew the greater part of them already, to speak to, and they me), that I got leave of absence on purpose, and established myself in the corner near the petition. It was stretched out, I recollect, on a great ironing board, under the window, which in another part of the room made a bedstead at night. The internal regulations of the place, for cleanliness and order, and for the government of a common room in the ale-house, where hot water and some means of cooking, and a good fire, were provided for all who paid a very small subscription, were excellently administered by a governing committee of debtors, of which my father was chairman for the time being. As many of the principal officers of this body as could be got into the small room without filling it up supported him, in front of the petition; and my old friend, Captain Porter (who had washed himself to do honor to the solemn occasion), stationed himself close to it, to read it to all

who were p. 144 unacquainted with its contents. The door was then thrown open, and they began to come in, in long file, several waiting on the landing outside, while one entered, affixed his signature, and went out. To everybody in succession Captain Porter said: 'Would you like to hear it read?' If he weakly showed the least disposition to hear it, Captain Porter, in a loud, sonorous voice, gave him every word of it. I remember a certain luscious roll he gave to such words as Majesty—gracious Majesty—your gracious Majesty's unfortunate subjects—your Majesty's well-known munificence—as if the words were something real in his mouth, and delicious to taste; my poor father meanwhile listening with a little of an author's vanity, and contemplating (not severely) the spikes on the opposite wall. Whatever was comical in this scene, and whatever was pathetic, I sincerely believe I perceived in my corner, whether I demonstrated it or not, quite as well as I should perceive it now. I made out my own little character and story for every man who put his name to the sheet of paper. I might be able to do that now, more truly; not more earnestly or with closer interest. Their p. 145 different peculiarities of dress, of face, of gait, of manner, were written indelibly upon my memory. I would rather have seen it than the best play ever played; and I thought about it afterwards over the pots of paste-blackening, often and often. When I looked, with my mind's eye, into the Fleet prison during Mr. Pickwick's incarceration, I wonder whether half-a-dozen men were wanting from the Marshalsea crowd that came filing in again to the sound of Captain Porter's voice." Here is the same scene, transferred to the King's Bench.

“By way of going in for anything that might be on the cards, I call to mind that Mr. Micawber, about this time, composed a petition to the House of Commons, praying for an alteration of the law of imprisonment for debt. I set down this remembrance here, because it is an instance to myself of the manner in which I fitted my old books to my altered life, and made stories for myself out of the streets, and out of men and women; and how some main

points in the character I shall unconsciously develop, I suppose, in writing my life, were gradually forming all the time.

“There was a club in the prison, in which Mr. Micawber, as a gentleman, was a great authority. Mr. Micawber had stated his idea of this p. 146 petition to the club, and the club had strongly approved the same. Wherefore Mr. Micawber (who was a thoroughly good-natured man, and as active a creature about anything but his own affairs as ever existed, and never so happy as when he was busy about something that could never be any profit to him) set to work at the petition, invented it, engrossed it on an immense sheet of paper, spread it out on the table, and appointed a time for all the club, and all within the wall if they chose, to come up to his room and sign it.

“When I heard of this approaching ceremony, I was so anxious to see them all come in, one after another, though I knew the greater part of them already, and they me, that I got an hour’s leave of absence from Murdstone and Grinby’s, and established myself in a corner for that purpose. As many of the principal members of the club as could be got into the small room without filling it supported Mr. Micawber in front of the petition, while my old friend Captain Hopkins (who had washed himself to do honor to the solemn occasion) stationed himself close to it, to read it to all who were unacquainted with its contents. The door was then thrown open, and the general population began to come in, in a long file; several waiting outside, while one entered, affixed his signature, and went out. To everybody in succession Captain Hopkins said: ‘Have you read p. 147 it?’ ‘No.’ ‘Would you like to hear it read?’ If he weakly showed the least disposition to hear it, Captain Hopkins, in a loud, sonorous voice, gave him every word of it. The Captain would have read it 20,000 times if 20,000 people would have heard him, one by one. I remember a certain luscious

roll he gave to such phrases as; ‘the peoples’ representatives in Parliament assembled,’ ‘your petitioners therefore approach your honorable house,’ ‘His Gracious Majesty’s unfortunate subjects,’ as if the words were something real in his mouth and delicious to taste, Mr. Micawber, meanwhile, listening with a little of an author’s vanity and contemplating (not severely) the spikes on the opposite wall.

“As I walked to and fro daily between Southwark and Blackfriars, and lounged about at meal times in obscure streets, the stones of which may, for anything I know, be worn at this moment by my childish feet, I wondered how many of these people were wanting in the crowd that used to come filing before me in review again, to the echo of Captain Hopkins’s voice. When my thoughts go back now to that slow agony of my youth, I wonder how much of the histories I invented for such people hangs like a mist of fancy over well-remembered facts. When I tread the old ground, I do not wonder that I seem to see and pity, going on before me, an innocent romantic boy, p. 148 making his imaginative world out of such strange experiences and sordid things.”

The fortunate acquisition of a legacy of considerable amount released the elder Dickens from the Marshalsea. “In due time Mr. Micawber’s petition was ripe for hearing, and that gentleman was ordered to be discharged under the Act. Mr. Micawber returned to the King’s Bench when his case was over, as some fees were to be settled, and some formalities observed, before he could be actually released. The club received him with transport, and held a harmonic meeting that evening in his honor; while Mrs. Micawber and I had a lamb’s fry in private, surrounded by the sleeping family.” But you may read all there is to be read of the Micawbers and the King’s Bench in the first volume of “David Copperfield,” Chapters 11 and 12, and compare it, if you choose, with the early passages of “The Life of Charles Dickens,” by John Forster, Volume I.

Dickens's presentations of the Fleet and the Marshalsea had, it will be noted, the interest of description as well as of personal association with the characters of the stories for which they provided a part of the scenario. The King's p. 149 Bench is an entirely personal episode. The figure of Mr. Micawber obscures all view of the prison. It poses on the merest suggestion of a background of barred windows and spiked walls. For this there are two reasons to be found. In the first place, all of the debtors' prisons of London were alike in their general features. They differed only in degrees and details of misery. In the Fleet and in the Marshalsea Dickens had exposed all that fell within his vocation to expose. Moreover, the necessity for invoking public obloquy upon the dens had passed away with the revision of the laws for debt. To have elaborated the material details of the life in the King's Bench would have been to repeat a twice-told tale. Apart from this, Dickens had made no special study of the King's Bench Prison. His memories of the Marshalsea were indelibly imprinted on his mind. It had been a part of his own life. He had explored the Fleet with the purpose of lending what aid he could toward its abolishment. His boyish wanderings had made him familiar enough with the external aspect of the King's Bench, and he had visited it on at least one occasion when an acquaintance was incarcerated p. 150 there. But, after the Fleet and Marshalsea, its familiar features made no appeal to him. What could he say or write of it that had not been said or written by him already?

The King's Bench Prison of Micawber's time stood in the Borough Road. It was much more roomy and endurable than the Marshalsea, and much less wretched than the Fleet. It was enclosed by a wall thirty-five feet high, garnished with the usual chevaux-de-frise, and was entered through a stone lodge three stories in height. The jail buildings themselves carried four stories, and were broken up into nearly 250 rooms, with a chapel, and out-buildings for officials and for cookery and other necessities. The courtyard was comparatively spacious, and was especially famous for its racket games. Some

champion scores of the day were scored by the collegians at the King's Bench, who certainly had time enough for practice to perfect themselves in the sport. Like the Fleet and the Marshalsea, the King's Bench had its tap-room and its coffee-room, its poor side and its pay side, and its club, which nightly, over a pipe and pot, forgot for a few hours that the jail yard was not all out-of-doors. The prison derived p. 151 its title from the fact that it was the gaol of the High Court of Justice, over which royalty was supposed to sit as supreme judge. So it became the Queen's Bench when England was ruled by a queen, and under the Commonwealth, when royalty was not recognized, bore the name of the Upper Bench Prison.

The original King's Bench Prison was situated in Southwark as early as the reign of Richard II. It was broken into and sacked by the Kentish rebels under Wat Tyler, who, on this occasion, performed a similar service to the old Marshalsea close at hand. It was to the King's Bench that Chief Justice Gascoigne so intrepidly committed the Prince of Wales, afterward Henry V; and down to the time of Oldys the room in which the wild young crony of Sir John Falstaff spent his term in gaol, was known as the Prince of Wales's Chamber. The old King's Bench seems to have been a decidedly easy-going jail. In 1579 we learn from the chronicles that the prisoners used to eat in a little low parlor next the street, and that they always had an audience staring at them through the barred windows, such as nowadays honors the repasts of the wild beasts in the zoo. During p. 152 this year the prisoners petitioned for an enlargement of the prison and for a chapel, both of which requests seem to have been granted. Defoe, who sampled the King's Bench as well as Newgate and the Fleet, describes it as "not near so good" as the latter little prison, and complained that "to a man who had money the Bench was only the name of a prison." Indeed, the license of the seventeenth and the eighteenth centuries in the King's Bench would be hardly credible to persons accustomed only to the rigid discipline of modern jail management. In all the debtors' gaols of this period, the gambler and the swindler, the pickpocket, and even

the footpads, who robbed by violence, plied their trades. Drunkenness was universal, and the commitment of loose women and the freedom of entry from without made worse debaucheries than those of the bottle easy of indulgence. At certain periods of their history the prisons seem to have been nothing less than vast bagnio-taverns, only the restriction upon the egress of the debtors distinguishing them from the common resorts of the town. The authorities of the jail were not supersensitive in their morality, provided their purses were kept p. 153 filled. Wealth might riot, if it paid the piper, as readily and freely as poverty might rot for the wherewithal to buy a crust of bread. Roderick Random's naked debtor shivering in a scrap of worn-out carpet was no fiction of the King's Bench, nor Captain Blazer's banquets to his fair friends from over the river a romance.

Smollet knew the Bench well enough. He had spent a term of probation behind its walls, and wrote "Sir Launcelot Greaves" within its rules. John Wilkes lay by the heels for one of his libels under its smoky roof, and hither came the mob to release him in 1768. The mob assembled in St. George's Field for the purpose, and thus in 1780 the Gordon Rioters gathered, who, a few days later, burst the prison gates and turned 700 prisoners loose before they put the rotten and reeking old jail to the torch. Combe was a prisoner under the rules of the King's Bench when he wrote "Dr. Syntax," and Haydon drew his idea of "The Mock Election" from a burlesque enacted among the prisoners while he was locked up in the jail for debt. A volume could be filled with the curious and characteristic events and personal episodes of p. 154 the prison from the days of Wat Tyler down to 1862, when the last debtor passed out at the lodge gate, and the brief career of the King's Bench as a military prison began. Its history covered really that of two prisons, for after the attack of 1780 by the rioters, the old site was abandoned and another chosen for the rebuilding of the jail. In one of Dickens's last strolls in Southwark, he noticed the fact that no vestige of the King's Bench remained, but that a huge structure devoted to model homes for workingmen redeemed

its unlamented grave from the uselessness which had made it a blight during many centuries. In Chapter 14 of Volume 2 of "Nicholas Nickleby," by the way, Dickens adverts to a feature of the law of which the King's Bench was one of the outgrowths, in connection with the first visit of Nicholas to Madeline Bray.

"The place to which Mr. Cheeryble had directed him was a row of mean and not over cleanly houses, situated within the 'Rules' of the King's Bench Prison, and not many hundred paces distant from the obelisk in St. George's Fields. The Rules are a certain liberty adjoining the prison, and comprising some dozen streets in which debtors who can raise p. 155 money to pay large fees, from which their creditors do not derive any benefit, are permitted to reside by the wise provisions of the same enlightened laws which leave the debtor who can raise no money to starve in gaol, without food, clothing, lodging, or warmth, which are provided for felons convicted of the most atrocious crimes that can disgrace humanity. There are many pleasant fictions of the law in constant operation, but there is not one so pleasant or practically humorous as that which supposes every man to be of equal value in its impartial eye, and the benefits of all laws to be equally obtainable by all men, without the smallest reference to the furniture of their pockets.

"To the row of houses indicated to him by Mr. Charles Cheeryble, Nicholas directed his steps without much troubling his head about such matters as these; and at this row of houses—after traversing a very dirty and dusty suburb of which minor theatricals, shell-fish, ginger-beer, spring vans, green grocery and brokers' shops appeared to compose the main and most prominent features—he at length arrived with a palpitating heart. There were small gardens in the front which, being wholly neglected in all other respects, served as little pens for the dust to collect in, until the wind came around the corner and blew it down the road. Opening the rickety gate which, dangling

on its broken hinges, before one of these, half admitted and p. 156 half repulsed the visitor, Nicholas knocked at the street door with a faltering hand.

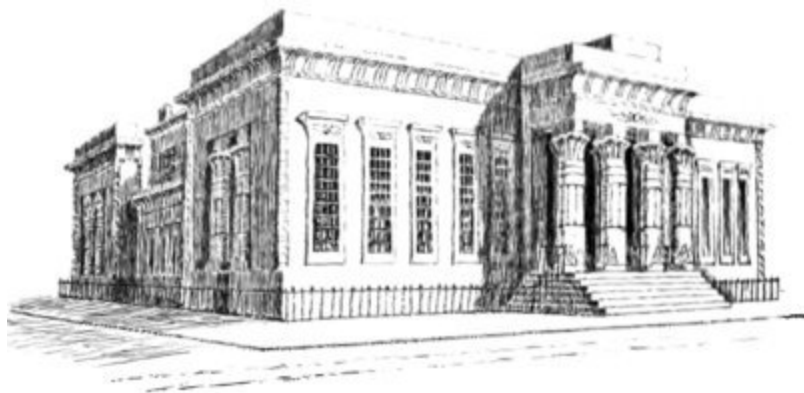
“It was, in truth, a shabby house outside, with very dim parlor windows and very small show of blinds, and very dirty muslin curtain dangling across the lower panes on very loose and limp strings. Neither, when the door was opened, did the inside appear to belie the outward promise, as there was a faded carpeting on the stairs and faded oil-cloth in the passage; in addition to which discomforts a gentleman Ruler was smoking hard in the front parlor (though it was not yet noon), while the lady of the house was busily engaged in turpentineing the disjointed fragments of a tent-bedstead at the door of the back parlor, as if in preparation for the reception of some new lodger who had been fortunate enough to engage it.”

The Fleet had its rules like the King’s Bench, but there was no such legalized stretching of the bounds of confinement tolerated at the Marshalsea. There the prisoner was supposed to remain a close prisoner within the walls until the courts ordained his release. In fact, however, if he had money he might buy sly periods of liberty under the eye of the keeper, and this abuse of his office brought the Marshal and his subordinates many a sovereign above their legitimate emoluments. One young gentleman p. 157 of sporting proclivities, who was committed to the Marshalsea while his lawyer was settling up the wreck of his handsome patrimonial estate, afterwards published an account of his experiences as a detained debtor. From this it appears that during the entire term of his detention he was a regular spectator at the cock fights, dog fights and prize fights, of the day, and that he kept his wherry on the Thames, and went out for a row whenever he felt the need of air and exercise. The keeper who accompanied him on these excursions, and who was of a sporting turn himself, left the prison to enter his employ, and was his faithful henchman at the time he printed his book, in the most genteel and elegant style, for circulation among his friends.

It is curious to note that even to our own day, and in our own country, this system of prison favoritism is not entirely unknown. If a man is arrested on a judgment for debt, he can, if he knows the way, save himself from being locked up for a night at least by paying the sheriff's deputy for it. To be sure the deputy will have to be in his company until he is duly handed over at Ludlow street Jail, and p. 158 properly receipted for, but there are such things as double bedded rooms in New York hotels. In the same way, it is shrewdly suspected, prisoners in Ludlow street who can pay for it can enjoy a night out once in a while. It used to be so at least; and by the evidence brought out by investigations in the past it was not even an unusual occurrence. It is popularly believed, by the way, that there is no such thing in New York state as imprisonment for debt. Some native realist in the line of fiction ought to take a turn over to the east side of the commercial metropolis of the United States, and weave his experiences of the Ludlow street cage into some such shape as Dickens did his of the Fleet, the Marshalsea, and the King's Bench.

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THE NEW YORK TOMBS

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CHAPTER VI.

THE NEW YORK TOMBS.

⑥ICKENS may fairly be said to have begun his sight-seeing in America by going to jail. He commenced with those in Boston, and wherever else he found a prison he had a look at it. The interest he took in penal reform, which rendered him familiar with nearly every gaol in England, did not desert him when he made his first voyage across the Atlantic. In the “American Notes,” among a number of minor and comparatively unimportant observations, most of which are, in fact, long out of date, and lost in the changed conditions of jail construction, discipline and government, there are two descriptions, which retain their interest. The first in order of occurrence in the book, relates to a prison as famous throughout America as Newgate is in Great Britain, and which, indeed, is the closest approach we have to the gloomy criminal cage of London. You may find it in a description of a walk about New York in Chapter 6:

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“What is this dismal-fronted pile of bastard Egyptian, like an enchanter’s palace in a melodrama? A famous prison called the Tombs. Shall we go in?

“So. A long, narrow and lofty building, stove-heated as usual, with four galleries, one above the other, going round it, and communicating by stairs. Between the two sides of each gallery, and in its center, a bridge for the greater convenience of crossing. On each of these bridges sits a man, dozing or reading, or talking to an idle companion. On each tier are two opposite rows of small iron doors. They look like furnace doors, but are cold and black, as though the fires within had all gone out. Some

two or three are open, and women with drooping heads bent down are talking to the inmates. The whole is lighted by a skylight, but it is fast closed; and from the roof there dangle, limp and drooping, two useless windsails.

“A man with keys appears to show us round. A good-looking fellow, and in his way civil and obliging.

“‘Are those black doors the cells?’

“‘Yes.’

“‘Are they all full?’

“‘Well, they’re pretty nigh full, and that’s a fact and no two ways about it.’

“‘Those at the bottom are unwholesome, surely.’

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“‘Why, we do only put colored people in ’em. That’s the truth.’

“‘When do the prisoners take exercise?’

“‘Well, they do without it pretty much.’

“‘Do they never walk in the yard?’

“‘Considerable seldom.’

“‘Sometimes, I suppose?’

“‘Well, it’s rare they do. They keep pretty bright without it.’

“‘But suppose a man were here for a twelve-month? I know this is only a prison for criminals who are charged with some grave offenses, while they are awaiting trial, or are under remand, but the law affords criminals many means of delay. What with motions for new trials, arrest of judgment and what not, a prisoner might be here for twelve months, I take it, might he not?’

“‘Well, I guess he might.’

“‘Do you mean to say that in all that time he would never come out at that little iron door for exercise?’

“‘He might walk some, perhaps—not much.’

“‘Will you open one of the doors?’

“‘All, if you like.’

“The fastenings jar and rattle, and one of the doors turns slowly on its hinges. Let us look in. A small, bare

cell, into which the light enters through a high chink in the wall. There is a rude means of washing, a table, and a bedstead. Upon the latter sits a man of sixty, reading. p. 164 He looks up for a moment, gives an impatient, dogged shake, and fixes his eyes upon his book again. As we withdraw our heads the door closes on him, and is fastened as before. This man has murdered his wife and will probably be hanged.

“‘How long has he been here?’

“‘A month.’

“‘When will he be tried?’

“‘Next term.’

“‘When is that?’

“‘Next month.’

“‘In England, if a man is under sentence of death even, he has air and exercise at certain periods of the day.’

“‘Possible?’

“‘With what stupendous and untranslatable coolness he says this, and how loungingly he leads on to the woman’s side, making, as he goes, a kind of castanet of the key on the stair rail.

“‘Each cell-door on this side has a square aperture in it. Some of the women peep anxiously through it at the sound of footsteps; others shrink away in shame. For what offense can that lonely child, of ten or twelve years old, be shut up here? Oh, that boy? He is the son of a prisoner we saw just now; is a witness against his father, and is detained here for safe keeping until the trial, that’s all.

“‘But it is a dreadful place for the child to p. 165 pass the long days and nights in. This is rather hard treatment for a young witness, is it not? What says our conductor?

“‘Well, it ain’t a very rowdy life, and that’s a fact.’

“‘Again he clinks his metal castanet and leads us leisurely away. I have a question to ask him as we go.

“‘Pray, why do they call this place the Tombs?’

“‘Well, it’s the cant name.’

“‘I know it is. Why?’

““Some suicides happened here when it was first built. I expect it came about from that.””

It did not “come about from that” by any means. The Tombs was a comparatively new prison when Dickens saw it first. It was erected under an authorization of the Common Council of the city of New York, issued in 1833. At that time, Mr. John L. Stevens, of the Hoboken family who still keep up seigneurial state on the bank of the Hudson, having recently returned from an extended tour through Asia and the Holy Land, issued an account of his travels, with many illustrations of the rare and curious things he had seen. Among these was a representation of an ancient Egyptian tomb, accompanied by a full and accurate description. The p. 166 majestic proportions and sombre beauty of this mortuary structure so impressed the committee of the Common Council who had the selection of plans for the new jail that they adopted it as their model, and the general appearance and construction of the building was made to conform as closely as the necessities of its use permitted to Stevens’s design. As it stands it is probably the finest specimen of Egyptian architecture of its order to be found outside of Egypt itself, and the filth, squalor and grimy ugliness that hem it in only serve to accentuate its architectural beauty. Its official title is the City Prison, but the one by which it is best known was derived from the character of the edifice in “Stevens’s Travels,” after which it was planned.

From an artistic point of view the selection of a site for the Tombs was singularly unfortunate. At the date of its erection its location was upon the upper outskirts of the city. Now the town has grown beyond it miles upon miles. For years it stood in the heart of the lowest and most dangerous criminal district. Even now its surroundings of tenement-houses, workshops, dirty streets harboring dirty shops of the p. 167 basest order, are anything but inviting to the sightseer. Through Leonard and Franklin streets, which bound its lower and upper ends, one catches eastward glimpses of Baxter street festooned with the sidewalk displays of the old clo’ shops, and westward sees the passing life of Broadway. Elm street in the rear and Centre

street in front of it abound in sour-savored grogeries and the shabby hang-dog offices of the lower order of criminal lawyers who practice at the bar of the Tombs court. The streets swarm with the children of the tenements, which line them with towering piles of unclean brick and mortar; and the pedestrians who navigate them, and who hang about the outside of the prison, as if held there by a spell and only awaiting their turn to pass within its walls, are for the most part of that skulking, evil class which knows the interior of the jail quite as well as its outer barriers, and the ways which lead to its frowning gate. For many years the passenger traffic of the New York Central Railroad was embarked at a depot occupying the block above the Tombs. Travelers were here taken on board cars which were dragged by mules or horses up to Fourth avenue p. 168 and Twenty-sixth street, where the locomotive replaced the teams as a motor. As the town grew the railroad removed its station to the site of the present Madison Square Garden building, and converted the old depot into a freight-house, in and out of which lines of cars drawn by long tandems of mules clanked day and night the year round. Now the freight depot is gone, and an enormous granite structure, which accommodates the various criminal courts, rises on its site. Between this building and the Tombs an enclosed bridge for the passage of prisoners to and from court spans the street.

The Tombs itself was built in the basin of a little lake which was once one of the romantic spots of Manhattan Island, and a favorite resort of the angler and the pleasure seeker. The lake was known as the Collect Pond, a corruption of the Dutch title "Kalckhoek," or Shell Point, from a beach of shells which existed on its margin. The Collect was a fresh-water pond, fed by natural springs, and having an outlet by small streams into both the North and East rivers. Thus the pond and its creeks actually cut Manhattan Island in half and made p. 169 two islands of it. There were pleasure houses on the hillocks around the Collect, and on an island, in its centre, the city powder house was erected. The course of time worked the usual changes upon it for the worse. Tanners set up their tan pits near

it, the city garbage was dumped into it, and among the marshes to the eastward the criminal colony, since infamous as the Five Points, commenced to form itself. There was still water enough in it in 1796 for John Fitch to experiment in navigating the first steamboat America ever saw, but a few years later, to give employment to clamorous and starving labor, at a period of industrial and commercial stagnation, the city ordered the hills around it to be leveled and the pond filled up with the earth removed from them. In spite of the reduction of the ground to the westward, the site remained much lower than the grade of Broadway, and the Tombs roof is scarcely above the line of that thoroughfare. To support the ponderous mass of Maine granite, which constituted the prison, a forest of piles was sunk deep in the sodden soil. The work of construction occupied five years, so that the prison had been in use scarcely four years when p. 170 Dickens made his visit to it—and, while its outer walls remain substantially the same, its internal construction has been vastly augmented and improved. When he saw it the city watch-house occupied part of the building; and he makes a record of a night visit to “those black sties” where “men and women, against whom no crime is proved, lie all night in perfect darkness, surrounded by the noisome vapors which encircle that flagging lamp you light us with, and breathing this filthy and offensive stench.” The watch-house was on the Franklin street side of the jail, and was long kept up as a police station. Now it is used as a common room for the confinement of vagrants and drunkards picked up on the streets, pending their confinement to the penal institutions.

Of another old and hideous institution which one cannot disassociate with the Tombs, in spite of the abolition of it which has been decreed by law, Dickens wrote:

“The prison yard, in which he pauses now, has been the scene of terrible performances. Into this narrow, grave-like place men are brought out to die. The wretched creature stands beneath the gibbet on the ground; the rope is about his neck; and when the sign is given a p. 171 weight at its other end comes running down and swings

him up into the air—a corpse. The law requires that there be present at this dismal spectacle the judge, the jury, and citizens to the amount of twenty-five. From the community it is hidden. To the dissolute and bad the thing remains a frightful mystery. Between the criminal and them the prison wall is interposed as a thick and gloomy veil. It is the curtain to his bed of death, his winding sheet and grave. From him it shuts out life and all the motives to unrepenting hardihood in that last hour, which its mere sight and presence is often all sufficient to sustain. There are no bold eyes to make him bold; no ruffians to uphold a ruffian's name before. All beyond the pitiless stone wall is unknown space.”

At the time of Dickens's visit (1842) London was still the scene of public hangings, and the privacy with which the executions in the Tombs were conducted furnished him with a text for one of his protests against the existing state of things at home. The Tombs hangings were private, as he stated, but they were not unattended by morbid interest on the part of the mob. On the morning of an execution, the obscene streets all about would swarm with obscene life. From their festering dens in the Five Points, and from the remoter haunts of p. 172 vice and crime which had grown up with the growth of the town, the social banditti came in a scowling, ribald and revolting legion. They camped on doorsteps before dawn, and all the groggeries drove a roaring trade. They beguiled the time with gloating reminiscences of their criminal lives, and watched the jail roof for a signal that the ghastly work within was done. Curiously enough, nature had provided them with a sign as certain as the running up of the black flag upon the wall of Newgate. A great number of pigeons had found lodgment in the Tombs yard, nesting in cotes which had been put up for them along the inner jail walls and in the eaves of the buildings themselves. Long immunity from human aggressions had rendered them fearless, and when the audience gathered for an execution, under the gray shadow of the jail walls, the pigeons were equally certain to assemble, cooing and pluming themselves in the sunlight

above. When, at the fatal moment, the heavy thud of the executioner's axe denoted the severing of the cord which supported the counterweights and sent the victim whirling to his death, the birds, startled by the sound, would rise upward in p. 173 flurried flight, circle about a couple of times and settle at their perches again. It was by this confused and frightened movement of the pigeons above the walls that the waiting rabble knew the unseen tragedy of the law was done.

A moment later the race of reporters and messenger boys from the prison gate to the newspaper offices close by would begin, and in half an hour all the ghastly details of the event, described with such circumstantiality and such sensational exaggeration as the horror-hungry public was expected to crave for, would be hawked at every street corner and carried by swift runners and overdriven wagons to the most distant quarters of the town. To such extreme was this practice stretched that, on the occasions of later executions in the Tombs, reporters would actually be sent to spend the night in prison, and to record the last hours of a worthless brute whose just doom should have been a swift death and complete oblivion. Evil as the influence of a public hanging may have been, it may be doubted if it was any worse than the practice of the press in investing the attendant circumstances of a vile and dangerous p. 174 wretch's end with the mock heroism of cheap bravado and the clap-trap sentiment of literary fustian. The law providing for the execution of criminals by electricity, and in secret, has performed one public service, at least, in doing away with these outdoor gatherings at the Tombs on hanging day.

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THE PHILADELPHIA BASTILE

CHAPTER VII.

PHILADELPHIA'S BASTILE.

IN Philadelphia Dickens made a special request for permission to visit the great prison of the State, remarking that it and the Falls of Niagara were the two objects he most wished to see in America. Exceptional facilities were afforded him to gratify his desire, and make his investigation as thorough as he chose. Nothing was concealed from him, and his account and opinion of the Eastern State Penitentiary ("American Notes," Chapter 7) created a vast deal of comment in their day. He put himself on record as a violent opponent of the solitary system, and while he intended to make this chapter the strongest, it was really one of the weakest in the book. He had assailed the outrages of the debtors' prisons of London manfully. Over the Philadelphia system he became almost hysterical. In the former he had actual evils and wrongs and outrages to combat. In the latter his grievance p. 178 was largely founded on sentimentality and purely personal feeling. He describes his visit:

"In the outskirts stands a great prison called the Eastern Penitentiary, conducted on a plan peculiar to the State of Pennsylvania. The system here is rigid, strict and hopeless solitary confinement. I believe it, in its effects, to be cruel and wrong.

"I was accompanied to this prison by two gentlemen officially connected with its management, and passed the day in going from cell to cell and talking with the inmates. Every facility was afforded me that the utmost courtesy could suggest. Nothing was concealed or hidden from my view, and every piece of information that I sought was openly and frankly given. The perfect order of the building cannot be praised too highly, and of the

excellent motives of all who are immediately concerned in the administration of the system there can be no kind of question.

“Between the body of the prison and the outer wall there is a spacious garden. Entering it by a wicket in the massive gate, we pursued the path before us to its other termination, and passed into a large chamber, from which seven long passages radiate. On either side of each is a long, long row of low cell-doors with a certain number over every one. Above p. 179 a gallery of cells like those below, except that they have no narrow yard attached (as those in the ground tier have), and are somewhat smaller. The possession of two of these is supposed to compensate for the absence of so much air and exercise as can be had in the dull strip attached to each of the others, in an hour’s time every day; and, therefore, every prisoner in this upper story has two cells, adjoining and communicating with each other.

“Standing at the central point and looking down these dreary passages, the dull repose and quiet that prevails is awful. Occasionally there is a drowsy sound from some lone weaver’s shuttle or shoemaker’s last, but it is stilled by the thick walls and heavy dungeon door, and only serves to make the general stillness more profound. Over the head and face of every prisoner who comes into this melancholy house a black hood is drawn; and in this dark shroud, an emblem of the curtain dropped between him and the living world, he is led to the cell from which he never again comes forth until his whole term of imprisonment has expired. He never hears of wife or children, home or friends; the life or death of any single creature. He sees the prison officers, but, with that exception, he never looks upon a human countenance, or hears a human voice. He is a man buried alive, to be dug out in the slow rounds of years, and, in the meantime, dead to everything p. 180 but torturing anxieties and horrible despair.

“His name, and crime, and term of suffering are unknown, even to the officer who delivers him his daily food. There is a number over his cell-door, and in a book, of which the governor of the prison has one copy and the moral instructor another, this is the index to his history. Beyond these pages the prison has no record of his existence; and though he live to be in the same cell ten weary years, he has no means of knowing, down to the very last hour, in what part of the building it is situated; what kind of men there are about him; whether in the long winter nights there are living people near, or he is in some lonely corner of the great gaol, with walls and passages, and iron doors between him and the nearest sharer in its solitary horrors.

“Every cell has double doors—the outer one of sturdy oak, the other of grated iron, wherein there is a trap through which his food is handed. He has a bible and a slate and pencil, and, under certain restrictions, has sometimes other books, provided for the purpose, and pen and ink and paper. His razor, plate and can, and basin hang upon the wall, or shine upon the little shelf. Fresh water is laid on in every cell, and he can draw it at his pleasure. During the day his bedstead turns up against the wall and leaves more space for him to work in. His p. 181 loom, or bench, or wheel is there, and there he labors, sleeps and wakes and counts the seasons as they change, and grows old.”

Over the inmates of this Philadelphia gaol Dickens exuded a great deal of sympathy and sentiment. He invested each man he wrote about with a pathos that made good reading at any rate, and no doubt sincerely believed all that he wrote. To a man of a convivial and companionable nature like himself the idea of a life of solitude was naturally horrible. To a man fond of long walks among other men the enforced absence of exercise as well as of companionship was naturally dreadful. To Charles Dickens, in short, a term of imprisonment in the Eastern Penitentiary would unquestionably have been the cruelest

torture. He would, in all likelihood, have worn his life out speedily here, like a wild bird in a cage, or have laid violent hands upon himself, or have become a madman. To the felons whom he visited, men for the most part of blunt sensibilities and brutal natures, he credited the same qualities as belonged to his own refined and sensitive composition, and he put himself in their place and spoke for them from his own standpoint. How p. 182 far he was led astray by this was shown by the case of the character long known as “Dickens’s Dutchman.” Of this fellow he wrote:

“In another cell there was a German, sentenced to five years’ imprisonment for larceny, two of which had just expired. With colors procured in the same manner (extracted from dyed yarn given him to weave) he had painted every inch of the walls and ceiling quite beautifully. He had laid out the few feet of ground behind him with exquisite neatness, and had made a little bed in the centre, that looked, by the bye, like a grave. The taste and ingenuity he had displayed in everything was most extraordinary, and yet a more dejected, heartbroken, wretched creature it would be difficult to imagine. I never saw such a picture of forlorn affliction and distress of mind. My heart bled for him, and when the tears ran down his cheeks, and he took one of the visitors aside to ask, with his trembling hands nervously clutching at his coat to detain him, whether there was no hope of his dismal sentence being commuted, the spectacle was really too painful to witness. I never saw or heard any kind of misery that impressed me more than the wretchedness of this man.”

This was the Dickensesque of it, and it gave its unfortunate subject an international notoriety. Now mark the plain, unvarnished facts.

p. 183

The name of “Dickens’s Dutchman” was Charles Langheimer. He was sentenced to the Eastern Penitentiary for

the first time on May 15, 1840, and it was while he was serving this term that Dickens saw him. On June 25, 1852, he came back on a year's sentence, and on Feb. 24, 1855, he was a third time convicted, for two years on this occasion. On April 4, 1861, he came again for a year, on March 12, 1872, he was returned for two years, on Sept. 9, 1875, and on April 4, 1877, he began two terms of a year each. On Sept. 10, 1879, he received a three years' term, and he was no sooner through with this than he was once more convicted and sent up for a year, in 1882. In the intervals of the sixteen years he spent in this one prison, since his first conviction, he had served five terms in other prisons, three in the County Jail, of Philadelphia, one in the Baltimore Penitentiary, and one in New York. In plain English, the man was a confirmed pauper and thief. He lived by mendicancy, and from time to time he would commit some larceny, for which offense all his sentences were imposed on him, merely in order to be sent to jail to be cared for—just as he might have gone on p. 184 a vacation from his regular and miserable life upon the chance of charity.

In view of Dickens's positive and unqualified expression of sentiment in regard to him, the most curious fact of his life remains to be noted. This is that, fourteen years after Dickens's own death, he returned voluntarily to the penitentiary, where he had ended a year's term only a few months before, and begged to be taken in. This place, so dreadful to the impressionable novelist, was the only approach to home the poor wretch knew. He was in a deplorable condition, was nearly eighty years of age, and had a horror of the almshouse. The inspectors consented that he should have his wish, and he was cared for for a month, until his death, which occurred on March 14, 1884. It is interesting to know that Dickens died at the age of fifty-eight years. This "picture of forlorn affliction and distress of mind," this "dejected, heartbroken, wretched creature," who was born eight years before Dickens, survived him nearly twice that period, and outlived him, in the mere number of his years, by twenty-two. It may be remembered, in connection with the Fleet Prison episode of "Pickwick," p. 185 that Sam Weller

advertises to the almost identical case of an old prisoner, to whom the jail had become such a home that the fear of being locked out of it eventually deterred him from taking the sly tastes of liberty which the turnkeys were willing to allow him.

The Eastern State Penitentiary is, in this day, admitted to be one of the model penal institutions of the world. When built it was in the northern suburb, but it is now in the heart of Philadelphia. It occupies an entire block, comprising ten or twelve acres, and its site was originally known as Cherry Hill, a name which is often locally applied to the jail itself. The ground is elevated, and from the gateway tower a fine panorama of the vast city, spreading about for miles, may be obtained. All that is visible externally is a massive granite wall, some thirty-five feet high, slightly relieved or buttressed with towers at the angles and on the front. The enclosure is square, and the entrance, in the centre of the front wall, is by a lofty portal, defended by a heavy outer gate, in which there is a wicket, and an inner gate, and dominated by a tower taller than the others. Within the walls the ranges of cells radiate p. 186 from an octagonal central building, which is crowned with an observatory. To simplify the description it may be said that this central building forms the hub from which branch branch forth the spokes of this enormous wheel. A system of lighting the entire grounds by night is provided in a lantern of special ingenious construction, in the tower below the observatory or lookout. There are some detached buildings on the grounds, used for mechanical and culinary purposes. The living apartments of the warden and his family, offices, etc., are in the front building. The outer and inner gates of the prison are never opened at the same time. Even a visitor or an official becomes in a manner a prisoner when he leaves the street.

Dickens's general description of the prison is good enough, but some of his statements are more picturesque than precise. Prisoners are not shut off from intercourse by letter, or even personally, with their families. They do see various persons connected with the prison, although they cannot see other prisoners. Even this, which Dickens thought so cruel, and the

concealment of their faces when they are p. 187 brought in to the jail, is a precaution born of benevolence and mercy. The idea is that after a man has served a term at Cherry Hill and been discharged he may go where he will, and if he wishes to live an honest life no man can point him out as an ex-convict. Except in the private record of the prison, known only and accessible only to a few responsible persons, John Jimpson never existed in the Eastern State Penitentiary. The keepers, the doctor, the jail attendants only knew him as No. 99. The librarian never issued books to John Jimpson, but to No. 99. The nurses in the infirmary never attended him when he was sick, but cared for No. 99. No one but the warden knew whether the letters sent to him by his wife or family or friends were meant for No. 99 or No. 199. As far as the stigma of his crime and its punishment can be effaced it is effaced. He loses his social identity when he enters the prison, and puts it on when he comes out, like a new suit of clothes.

It is a rule of the prison that each convict, when he enters, shall be taught a useful trade, if he has not one already. He then has a daily task set, and all that he can or cares to produce p. 188 above this task is credited to him, and the money is paid to him when he departs. The illiterate convicts are taught to read and write. Those who display intelligence are encouraged to cultivate it. Convicts of superior education—such, for instance, as can produce literary work or paint pictures—are permitted the means to do so. The entire system of the prison is reformatory as well as punitive; the idea is not merely to cage a social beast, but to tame him and train him, so that he may be of use to the world when he has served his term of isolation.

The idea of separate confinement—the Philadelphia Idea, as it has been called—originated nearly a century ago. In an admirable sketch of the origin and history of the Eastern District Penitentiary, compiled by Mr. Richard Vaux, president of the board of Inspectors, the history of Pennsylvania's system of prison discipline and management is given in brief but interesting style. In 1776 the common jail of Philadelphia was as horrible a den as the worst of London jails at its worst. An

attempt was made by Richard Wistar, one of the famous family of that name, to reform it, but in 1777 p. 189 the British army occupied the city and the good work was, perforce, suspended. In 1787 it was taken up again, and the Philadelphia Prison Society was formed. The first president of the society was Bishop William White, the first Protestant Episcopal Archbishop of Pennsylvania, and he held the office for forty years. The society's first work was to have the chain gangs, employed at cleaning the streets and repairing the roads, abolished. The next was to secure a separation of the sexes in the common jail. Then the separation of actual criminals and of persons merely accused but not yet found guilty of crime demanded attention. So, by degrees, the idea of separate confinement took shape. In 1790 a law was passed by which this principle was put to the test, and finally, in 1821, the Legislature authorized the construction of the State Penitentiary for the Eastern district of Pennsylvania.

At this date the site of the present Penitentiary was a farm, remarkable for its grove of fine cherry trees. It belonged to the Warner family. The farm-house was a cheery old colonial mansion, and it is worth noting that when the Warners sold the land they reserved the p. 190 right to remove the mantels and fireplaces from the house. The place was purchased in 1821. The plans of several competing architects were submitted to the board appointed by the Legislature, and that of John Haviland was selected. The cornerstone of the Penitentiary was laid in 1823, and it was opened for the reception of convicts in 1829. Up to that time about \$340,000 had been expended on it, but since then the necessary enlargements and improvements have brought its cost up to probably \$1,000,000 or more. If Dickens could revisit it in the flesh to-day he would find it a much more extensive establishment than the one he criticised so severely and unjustly; and his confidence in himself would perhaps be shaken when he read the record of his woebegone "Dutchman."

THE END.

*** END OF THE PROJECT GUTENBERG EBOOK IN JAIL WITH
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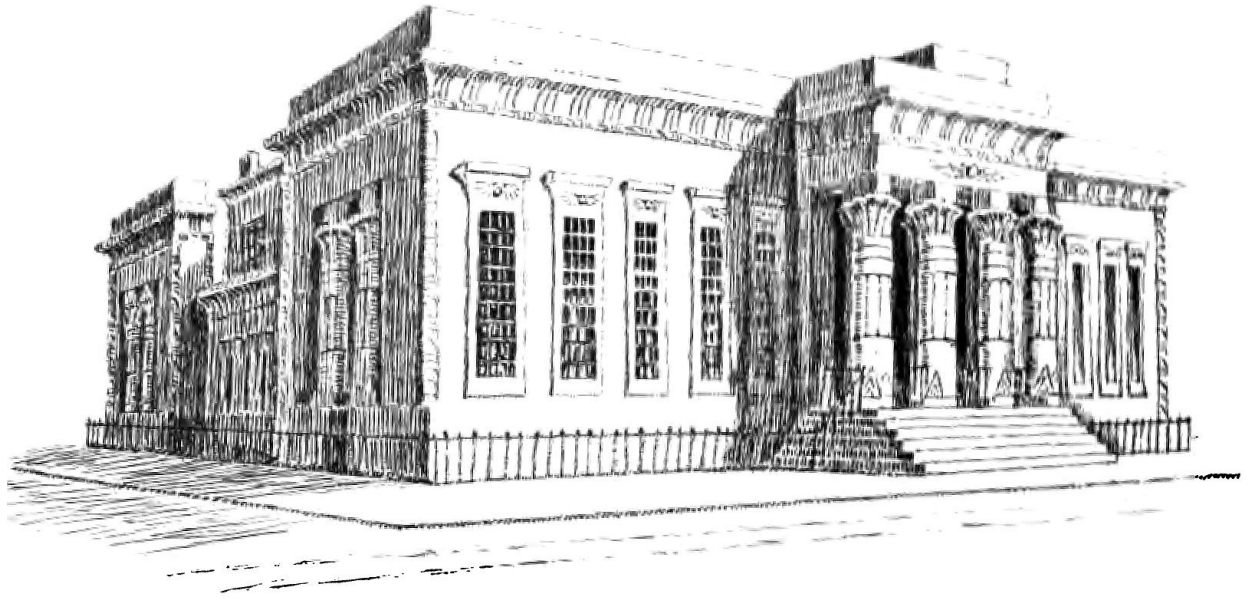
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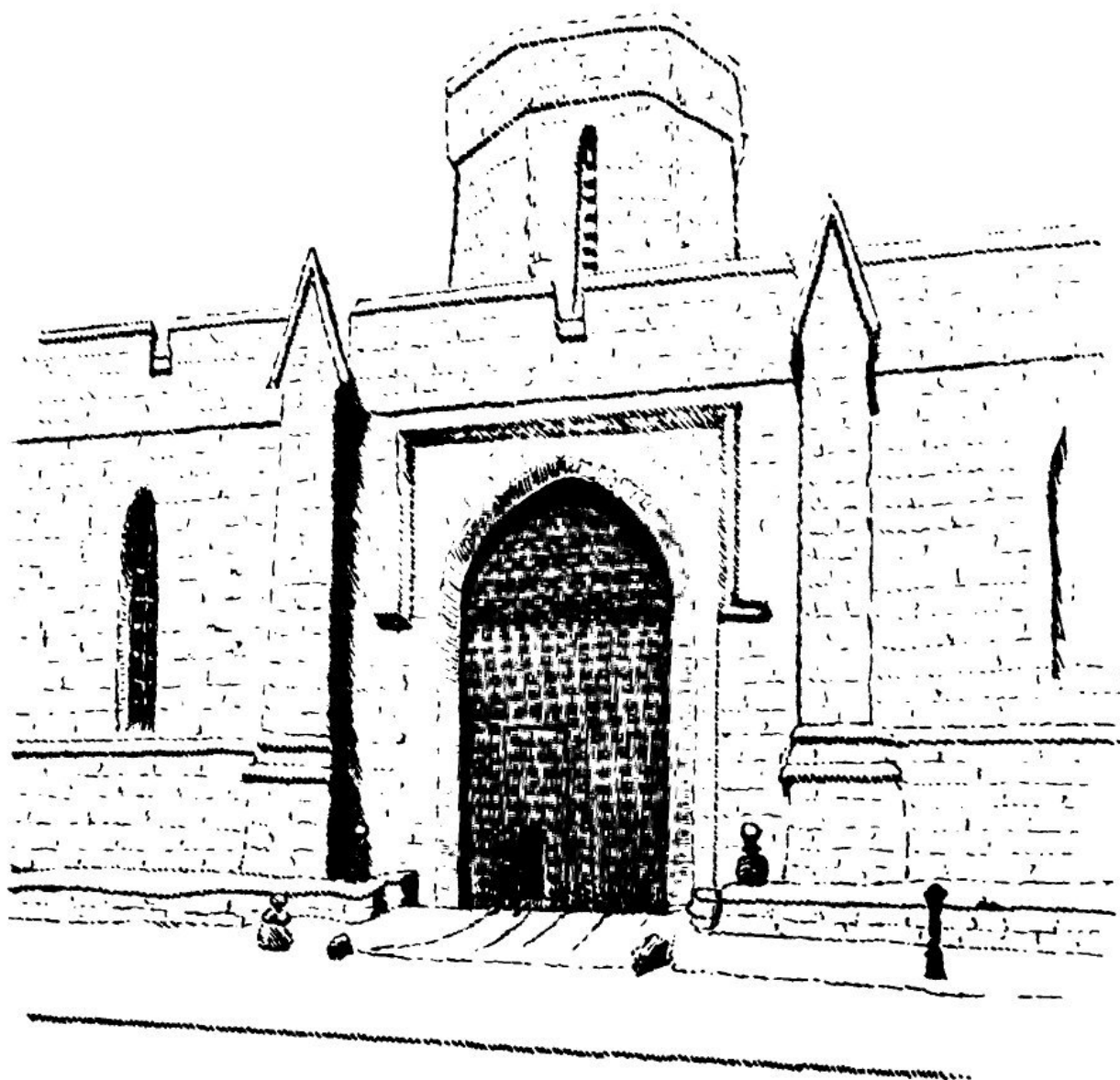
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